COMPANY AGREEMENT

SOLOMON DAO LLC

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Founding Memorandum

Status: Pre-formation (non-proposal; not voted)

NON-BINDING CONTEXT DOCUMENT. This Memorandum provides background and risk disclosure only. It does not create contractual obligations and is subordinate to all governing instruments under the supreme canonical reading: mandatory law, Primary Instruments, Secondary Instruments, and Tertiary Instruments. Proposal memoranda occupy the lowest tier and must yield to all higher-ranking instruments. Capitalized terms not defined herein have the meanings set forth in the governing instruments.

DAO LLC: SOLOMON DAO LLC (the "DAO" or the "Company"), a Marshall Islands DAO LLC organized under the Decentralized Autonomous Organizations Act of 2022 (as amended) (the "DAO Act"), the Limited Liability Company Act, 1996 (as amended) (to the extent not superseded by the DAO Act), and the Decentralized Autonomous Organization Regulations 2024 (the "DAO Regulations").

NOTICE OF RESTRICTIONS ON DUTIES AND TRANSFERS

The rights of members in a decentralized autonomous organization may differ materially from the rights of members in other resident domestic or non-resident domestic limited liability companies. This Chapter, underlying smart contracts, certificate of formation and limited liability company agreement, if applicable, of a decentralized autonomous organization may define, reduce or eliminate fiduciary duties and may restrict transfer of ownership interests, withdrawal or resignation from the decentralized autonomous organization, return of capital contributions and dissolution of the decentralized autonomous organization.

Statutory Notices

The following notices are provided pursuant to the DAO Act and DAO Regulations:

1. **Smart contract identifiers.** Any smart contract directly used to manage or facilitate Company governance is identified in the Smart Contract Registry, which forms part of this Company Agreement.
2. **Fiduciary duties.** Unless expressly provided in this Company Agreement, Members owe no fiduciary duty to the Company or to other Members, other than the implied contractual covenant of good faith and fair dealing.
3. **On-chain recordkeeping.** Where actions, transactions, voting, and decisions are recorded on a distributed ledger with human-readable explanations publicly available for the required retention period, the Company relies on that ledger as its record and does not maintain duplicate books, except where required by mandatory law or adopted policy.

4. **Inspection rights.** To the extent Company information is publicly available on a distributed ledger, the Company has no obligation to furnish that information separately, except where mandatory law requires otherwise.

Anyone acquiring Membership Interests must carefully review the Company Agreement in full and consider obtaining independent legal or professional advice.

Company Agreement Structure

This Company Agreement comprises the following instruments, as set forth in Operating Agreement §2.2 and restated here for convenience:

Primary Instruments

- **Operating Agreement** — Company formation, purpose, membership, governance mechanics, and the role of the Representative Agent and Senior Managing Official.
- **Founding Charter** — Governs member rights, Subcommittees, oversight mechanisms and delegated authority.
- **IP License Framework** — Company intellectual property licensing terms and framework.

Secondary Instruments

- **Smart Contract Registry** — Identifiers for smart contracts managing Company governance, and designated treasury addresses.
- **Website Registry** — Official online venues where Members convene for governance.
- **Intellectual Property Registry** — Protocol IP and Marks of the Company.
- **IP License & Assignment Register** — Licenses granted, received, and assignments of Protocol IP.
- **Counterparty Agreements Register** — Agreements the Company enters into with external parties.

Tertiary Instruments

- **SOP: Order of Business for Operational Packs** — Adoption, amendment, and ratification procedures for standard operating procedures.
- **SOP Registry** — Standard operating procedures, delegated authorities, and designated counterparties.

Under the supreme canonical reading (Operating Agreement §2.2(1)), all governing instruments are construed as a single integrated agreement. In the event of conflict, the order of precedence is: (1) mandatory law; (2) Primary Instruments (in order: the Operating Agreement, the Founding Charter, the IP License Framework); (3) Secondary Instruments; (4) Tertiary Instruments; and (5) Proposal Memoranda (including this Memorandum), which occupy the lowest tier.

Scope and Legal Posture

This Memorandum is incorporated into the Company Agreement. It provides background and context only. Operational actions require post-formation Resolutions.

Intellectual Property Firewall

1. **"Protocol"** in this Memorandum has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.
2. Protocol IP is licensed under terms that require licensees to comply with applicable law and assume responsibility for their own deployments and operations. The Company does not operate, control, administer, or maintain any deployment of Protocol IP and shall not be deemed to do so. Licensee conduct is independent and is not attributable to the Company.
3. Adoption of this Company Agreement or any Resolution does not obligate the Company to operate, provide, maintain, or support any deployment or service. No such obligation should be inferred from treasury directions or governance documentation.

Protocol IP Scope

"Protocol IP" has the meaning given in the Operating Agreement §2.1(17). For convenience, it includes (to the maximum extent protectable):

- source code;
- compiled, object, and bytecode;
- formal abstractions and specifications (including interfaces, IDLs, ABIs, state machines, schemas, and abstract syntax trees); and
- expressions in repositories or embodied in deployed copies.

Protocol IP does not include ownership of or operational control over any runtime execution, transaction flow, validator activity, block production, or assets held by or transacting with any deployment.

The schedule of Protocol IP is maintained in the Intellectual Property Registry.

Anti-Reliance; No Third-Party Beneficiaries; No Expansion by Conduct

1. **Supersession of prior materials.** Prior public materials — including launch documentation, website terms, draft agreements, and the Founder Covenant — are acknowledged as historical context for the formation of the Company only. The Founder Covenant is superseded and extinguished in its entirety. To the extent any obligation to establish a DAO LLC remains outstanding, it is discharged by the filing of this Company Agreement, and any delay is waived. The Founder Covenant has no continuing legal effect and may not be relied upon, cited, or used to interpret this Company Agreement or any other instrument. All other representations, terms, and commitments in prior materials are similarly superseded, extinguished, and without continuing legal effect.
2. **Anti-reliance.** No person may claim reliance on any statement, representation, warranty, forecast, valuation, marketing material, or other communication except as expressly set out in this Company Agreement.
3. **No third-party beneficiaries.** Nothing in this Company Agreement creates rights for any third party, except where expressly stated.
4. **No expansion by conduct.** To the maximum extent permitted by law, no implied covenant (other than good faith and fair dealing to the extent it cannot be eliminated), usage of trade, course of dealing, course of performance, marketing, silence, delay, or partial performance creates or expands obligations beyond the express text. No estoppel or similar doctrine may be asserted to create rights not expressly stated.
5. **No advisory relationship.** Nothing in this Company Agreement constitutes investment, legal, tax, or other professional advice. The Company does not act as adviser, broker, or financial services provider to any person. Each person is responsible for their own decisions and compliance.

Sovereignty and Entity Recognition

The Company is a legal entity duly organized under the laws of the Republic of the Marshall Islands with full legal personality and limited liability. The Company owns intellectual property and other assets, and Members hold economic interests in the Company.

Nothing in this Company Agreement concedes that any foreign authority may disregard the Company's separate legal existence, limited liability, or statutory status, or concedes any "look-through" treatment beyond what mandatory law validly requires.

This Company Agreement is drafted to preserve legal separateness and to avoid implying agency, partnership, or control relationships that could be used to attribute third-party conduct to the Company.

Purpose and Formation

The Company holds the Protocol IP and manages the Company treasury.

1. **Formation.** The Company is formed as a Marshall Islands DAO LLC upon the Effective Date (filing effectiveness of the Certificate of Formation).
2. **For-profit status.** The Company is organized as a for-profit DAO LLC.
3. **Governance.** The Company's governance, including on-chain proposal voting and execution via multisig infrastructure, operates in accordance with the Operating Agreement.
4. **Binding effect.** On the Effective Date, this Company Agreement is binding on the Members and the Head Steward (as defined in the Operating Agreement) to the maximum extent permitted by the Acts.

Operating Agreement of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

PRIMARY INSTRUMENT. This Operating Agreement is a binding primary instrument of the Company Agreement and governs the Company, its Members, and the Representative Agent.

Effectiveness. This Operating Agreement becomes effective on the Effective Date specified in Section 1.1(2). Post-formation governance actions may ratify, amend, or implement provisions as supplementary evidence, but are not a condition to effectiveness.

NOTICE OF RESTRICTIONS ON DUTIES AND TRANSFERS

The rights of members in a decentralized autonomous organization may differ materially from the rights of members in other resident domestic or non-resident domestic limited liability companies. This Chapter, underlying smart contracts, certificate of formation and limited liability company agreement, if applicable, of a decentralized autonomous organization may define, reduce or eliminate fiduciary duties and may restrict transfer of ownership interests, withdrawal or resignation from the decentralized autonomous organization, return of capital contributions and dissolution of the decentralized autonomous organization.

This Operating Agreement is intended to comply with the Decentralized Autonomous Organizations Act of 2022 (as amended) (the "DAO Act"), the Limited Liability Company Act, 1996 (as amended) (to the extent not superseded by the DAO Act), and the Decentralized Autonomous Organization Regulations 2024 (the "DAO Regulations").

Anyone acquiring Membership Interests must carefully review the Company Agreement in full and consider obtaining independent legal or professional advice.

Article I — Organization

1.1 Formation and Status

1. **Company.** This Operating Agreement (this "Agreement") governs SOLOMON DAO LLC (the "Company" or the "DAO"), a Marshall Islands DAO LLC formed under the DAO Act, the LLC Act (to the extent not superseded), and the DAO Regulations.
2. **Effective Date.** This Agreement becomes effective on the later of:
    - the date and time the Company comes into existence upon filing of its Certificate of Formation with the Registrar; and
    - any later effective date stated in the Certificate of Formation or this Agreement.
3. **Members.** Each person or entity admitted as a Member under this Agreement is a party to this Agreement. No person becomes a Member except as provided herein or as mandatory law requires. The Members collectively and the Company are the parties to this Agreement.
4. **Algorithmic Management.** The Company is an algorithmically managed decentralized autonomous organization within the meaning of the DAO Act. The Governance System and any smart contracts identified in the Smart Contract Registry may be used to manage or facilitate Company activities, subject to this Agreement and the Certificate of Formation.

    Algorithmic management includes the on-chain adoption of Resolutions within the Governance System and the execution of Execution Bundles that effectuate such Resolutions. The mere fact that a Resolution interacts with external on-chain programs or accounts does not make those external systems part of the Governance System or subject them to Company control. External programs and accounts are encompassed only if expressly designated by Resolution and recorded in the Smart Contract Registry.

1.2 Registered Office, Registered Agent, and Representative Agent

The Company's registered office and registered agent in the Republic of the Marshall Islands shall be MIDAO Directory Services (or any successor registered agent permitted under the DAO Act), at the address stated in the Certificate of Formation.

The Company shall designate and continuously maintain a Representative Agent as required by the DAO Act and DAO Regulations. The Representative Agent is an administrative and statutory contact role and does not, by itself, confer authority over the Governance System, Company treasury, or any deployment of Protocol IP.

The Representative Agent shall prepare, execute, and file the Beneficial Owner Information Report (Form 2) and any annual filings (Form 4) required under DAO Act §112 and the DAO Regulations. For purposes of those filings, the Representative Agent shall also serve as the Company's Senior Managing Official

(SMO). Where BOIR/Form 2 Category C applies, the Head Steward, in the limited role set out under Section 8.4(1), also serves as the Company's authorized representative member for BOIR purposes in accordance with Section 8.4(2). The Representative Agent (including in its SMO capacity) has a narrow statutory-compliance mandate only.

1.3 No Partnership or Agency

The Members intend that the Company be treated as a limited liability company under the DAO Act and LLC Act, not as a general partnership or limited partnership. Except as expressly provided in this Agreement or in a separate written contract approved by the Governance System:

- no Member is a partner, joint venturer, or agent of any other Member or of the Company; and
- no Member has authority to bind the Company or any other Member merely by reason of holding Tokens or Membership Interests.

Member-to-member dealings. Members remain free to transact and associate with one another in their personal capacities. Limitations on Member conduct apply only to Company affairs and are set out in the Founding Charter. With respect to Company matters, Members must act consistently with the implied covenant of good faith and fair dealing.

Article II — Definitions and Interpretation

2.1 Definitions

In this Agreement:

1. **"Blockchain"** means a distributed ledger maintained by a decentralized network of computers using cryptographic methods to validate and record transactions. **"Blockchain System"** means the Solana mainnet blockchain unless otherwise specified. **"Smart Contract"** means self-executing code deployed on a Blockchain that executes according to its programmed logic.
2. **"Company Treasury Accounts"** means only those Solana accounts, smart contracts, or addresses that:
    - are designated by Resolution as holding property in which the Company holds all right, title, and interest; and
    - are listed in the Smart Contract Registry.

    Company Treasury Accounts exclude all accounts holding assets belonging to third parties. The Governance System's technical ability to propose or execute transactions touching any account does not, by itself, make that account a Company Treasury Account or its contents property of the Company.
3. **"Smart Contract Registry"** means the registry forming part of this Agreement that, for purposes of DAO Act §106(2), identifies the publicly available identifiers of smart contracts directly used to manage or facilitate the Company's governance. The Smart Contract Registry includes a Company Treasury Accounts Register identifying addresses designated as Company property. The Smart Contract Registry may be updated only in accordance with Sections 6.6 and 6.7.
4. **"Website Registry"** means the registry forming part of this Agreement that, for purposes of DAO Act §102(p), designates the Company's official online venues where Members convene to participate in governance. The Website Registry may be updated only in accordance with Sections 6.6 and 6.7.
5. **"Intellectual Property Registry"** means the registry forming part of this Agreement that identifies the Protocol IP of the Company and records, for reference and provenance purposes, the canonical instruments, artefacts, and identifiers comprising Protocol IP, together with any updates adopted in accordance with the Founding Charter and recorded in the SOP Registry.
6. **"IP License & Assignment Register"** means the register forming part of this Agreement that serves as the canonical index of Licenses granted by the Company in respect of Protocol IP and any related assignments to the Company recorded under the IP License Framework, including references (by identifier, path, and/or hash commitment) to the then-current license package and any schedules, as updated from time to time in accordance with the Founding Charter and recorded in the SOP Registry.
7. **"Counterparty Agreements Register"** means the register forming part of this Agreement that serves as the canonical index of agreements the Company enters into with external parties (including

amendments, statements of work, side letters, and terminations). Recording in the Counterparty Agreements Register is for governance traceability and record-keeping only. An agreement recorded in the Counterparty Agreements Register does not amend, supplement, or modify any license of Protocol IP, the IP License Framework, or any entry in the Intellectual Property Registry or IP License & Assignment Register, except where the Company has expressly adopted such amendment in the manner required by the Company Agreement and recorded it in the SOP Registry.

8. **"SOP Registry"** means the Company's canonical record repository designated under the Company Agreement for maintaining adopted instruments, registries, registers, and SOP artefacts (including public records, hash commitments, and governance record packages), as updated from time to time in accordance with the Founding Charter.
9. **"Execution Bundle"** means the on-chain transaction or transactions associated with a governance proposal that implement a Resolution, as further described in the Founding Charter.
10. **"MetaDAO"** means MetaDAO LLC, a Republic of the Marshall Islands limited liability company, which holds intellectual property rights in futarchy-based governance mechanisms. The Company's utilization of MetaDAO intellectual property is predicated on the reasonable expectation that MetaDAO maintains appropriate legal arrangements with respect to such intellectual property and that any authorized operator or implementer of such intellectual property maintains compliance with applicable laws in relevant jurisdictions, without any representation, warranty, or undertaking by the Company as to any of the foregoing and without any duty by the Company to verify the same.
11. **"Futarchic Mechanism"** means the smart contracts on Solana implementing MetaDAO's futarchy-based governance intellectual property (Futarchy), as designated by the Company as the primary market-based governance mechanism for adoption or rejection of proposals, including any successors or upgrades. The Company participates in the Futarchic Mechanism as a user and does not operate, maintain, or have administrative authority over such smart contracts.
12. **"Governance System"** means, collectively:

    - the Futarchic Mechanism;
    - any voting, proposal, or execution coordinators used by the Company; and
    - any Squads or equivalent on-chain multisig used to originate Execution Bundles;

    as further described in the Founding Charter.
13. **"Proposal Memoranda"** means governance proposal documents maintained in the Company's public proposal repository, conforming to the adopted record schema. Proposal Memoranda are for transparency and best practice only and are not mechanically binding on the Governance System.
14. **"Membership Tokens"** means the token(s) on the Blockchain System that the Company Agreement designates as conferring voting or economic rights in the Company and representing Membership Interests, as identified by mint address(es) and any successor identifiers recorded in the Smart Contract Registry.

15. **"Membership Interest"** means a Member's personal contractual rights under this Agreement, including economic and voting rights (if any) and the covenant of good faith and fair dealing. A Membership Interest is a contractual right only. Membership Interests are represented by Membership Tokens and transfer with the corresponding Membership Tokens on the Blockchain System.

    Holding or administering Tokens that are not Membership Tokens does not, by itself, make the holder a Member or confer any Membership Interest. Membership rights arise only from the Company Agreement.

16. **"Implementation"** means any deployment, instantiation, copy, interface, integration, or operational stack (whether on-chain or off-chain) that implements, embodies, executes, uses, exposes, or interfaces with any Protocol IP, including on-chain programs, upgrade authorities, multisigs, signers, frontends, APIs, SDKs, bots, keepers, relayers, indexers, data services, servers, websites, repositories, and any other infrastructure or runtime environment.

    An Implementation is not the Company, is not operated by the Company, and is not attributable to the Company for any purpose (including operation, control, custody, issuance, administration, maintenance, compliance responsibility, or regulatory characterization of the Company), regardless of:

    - any governance activity, Resolution, vote, parameter setting, publication, listing, specification, recommendation, or documentation by the Company;
    - any IP ownership or licensing by the Company; or
    - any participation by Members in their individual capacities.

    No Implementation is deemed Company-operated or Company-controlled by virtue of the Company describing it, referencing it, licensing Protocol IP to it, receiving reports about it, approving a Resolution that contemplates it, or Members voting for or against actions relating to it.

17. **"Protocol IP"** means the intellectual property defined in the Founding Charter and recorded in the Intellectual Property Registry, including this Agreement and other governance instruments. "Protocol" is shorthand for Protocol IP only.

    Protocol IP is intangible. In relation to software, Protocol IP includes (to the maximum extent protectable) source code, compiled and object code, bytecode, and formal abstractions and specifications (including interfaces, IDLs, ABIs, state machines, schemas, models, proofs, and abstract syntax trees), whether expressed in repositories or embodied in fixed copies (referring solely to program code as recorded in blockchain state, not to runtime execution, transaction processing, or state transitions resulting from invocation). In relation to governance, Protocol IP includes the Company Agreement and all instruments incorporated by reference.

    Protocol IP does not include the Governance System or any smart contracts, programs, or intellectual property owned by third parties, including MetaDAO. Protocol IP does not include, and must not be construed as, any operational activity, operational role, or operational control in any form. Protocol IP does not include ownership of, custody over, or responsibility for: any runtime execution, transaction

flow, order flow, validator activity, block production, network operation, hosting, key management, upgrade authority, admin privileges, onboarding, support, compliance operations, or any assets held by, transacting with, or associated with any Implementation.

Any listing of on-chain program addresses, multisig identifiers, signing keys, upgrade authorities, domain names, URLs, API endpoints, repositories, or other identifiers in any registry identifies a referenced artefact for IP and reference purposes only. Such listing must not be interpreted as asserting that the Company operates, controls, administers, maintains, manages, supports, or provides any Implementation, or holds any keys, credentials, or operational privileges, or is responsible for any outcomes, transactions, or assets associated with it.

"Protocol" is not and must not be interpreted as an operating service, issuer, custodian, counterparty, partnership, joint venture, agent, fiduciary, manager, or other person or entity, and must not be construed to imply operation or control by the Company.

References in this Agreement to "operate," "run," "deploy," "upgrade," "administer," "maintain," "manage," "rebalance," "mint," "burn," "issue," "redeem," or similar verbs, when used in connection with Protocol IP, refer only to software capabilities, design descriptions, or IP artefacts, and not to any activity by the Company.

18. **"Fraud"** means an intentional deception, misrepresentation, concealment, or other knowing violation of a legal duty, carried out with the purpose of securing an improper advantage or causing loss to another person.
19. **"Willful Misconduct"** means any deliberate act or omission that constitutes either Fraud or a knowing and intentional disregard of material duties under the Company Agreement or mandatory law, where such an act or omission is reasonably expected to cause material harm to the Company. Willful Misconduct does not include negligence, errors of judgment, or mistakes made in good faith.
20. **"Primary Instruments"** means this Agreement, the Founding Charter, and the IP License Framework.
21. **"Secondary Instruments"** means the Smart Contract Registry, Website Registry, Intellectual Property Registry, IP License & Assignment Register, and the Counterparty Agreements Register.
22. **"Tertiary Instruments"** means the SOP Registry and its contents, including SOPs, runbooks, key registries, security policies, the SOP: Order of Business for Operational Packs, and similar operational artefacts. Tertiary Instruments support administration and record-keeping of the Company Agreement but do not override Primary or Secondary Instruments.
23. **"SOP"** or **"Standard Operating Procedure"** means a documented operational or security procedure governing routine activities, controls, or response processes.
24. **"Operational Pack"** means a periodic governance proposal that ratifies a batch of Tertiary Instruments, including their hashes or content identifiers and effective date.
25. **"Security-Sensitive Information"** means information that the Company or the Representative Agent

reasonably determines should be withheld, delayed, or summarized because disclosure would increase exploit risk, materially compromise key management or incident response, or materially harm the security of Company treasury. Security-Sensitive Information includes private keys, signing infrastructure, key-ceremony details, incident-response runbooks, security controls, vulnerability details pending remediation, and sensitive arrangements where disclosure would increase exploit risk.

26. **"Head Steward"** means the person serving as the Company's administrative steward and point of contact, being the Representative Agent and Senior Managing Official and, where applicable under Section 8.4, the Company's authorized representative member for BOIR/Form 2 Category C purposes. There may be only one Head Steward at any time. This is not a statutory title and confers no additional rights, powers, privileges, or duties beyond those created by the Company Agreement and mandatory law.
27. **"Confidential Information"** means any non-public information including internal communications, books and records, account statements, operational runbooks, proprietary methods, trade secrets, and any information required to be kept confidential under applicable law, regulation, contract, or professional duty.
28. **"Privileged Internal Information"** means any information protected by legal privilege or similar protection, including attorney-client privilege, legal-advice privilege, work product, litigation privilege, settlement privilege, regulator-exam confidentiality, bank secrecy obligations, professional secrecy, or comparable protections.
29. **"Legal Request"** means any subpoena, court order, warrant, regulatory request, compulsory process, or other lawful demand from a competent authority that requires production of documents or information, seeks testimony, or otherwise compels action or preservation.
30. **"Subcommittee"** means a subcommittee established under the Founding Charter, including any subcommittee established by Resolution pursuant to the Founding Charter, to exercise authority within a defined scope.
31. **No imputation; no waiver.** Any disclosure of Confidential Information or Privileged Internal Information to the Company, an auditor, or an Audit Subcommittee (or other Subcommittee authorized by Resolution to conduct a review) does not waive privilege or confidentiality as to any other person, does not constitute notice to or knowledge of any Member who did not receive the information, does not create any Member right of access, and does not create control, supervisory authority, constructive knowledge, or attribution.

2.2 Interpretation

1. **Supreme canonical reading.** All governing instruments shall be construed as a single integrated agreement. In the event of conflict, the following order of precedence applies:
    - mandatory law prevails; then

- Primary Instruments (in order: this Agreement, then the Founding Charter, then the IP License Framework); then
- Secondary Instruments; then
- Tertiary Instruments; then
- Proposal Memoranda.

2. **Incorporation by reference.** The following instruments are incorporated by reference and form part of the Company Agreement:

   Primary Instruments:

   - Founding Charter
   - IP License Framework

   Secondary Instruments:

   - Smart Contract Registry
   - Website Registry
   - Intellectual Property Registry
   - IP License & Assignment Register
   - Counterparty Agreements Register

   Tertiary Instruments:

   - SOP: Order of Business for Operational Packs
   - SOP Registry

   Additional instruments may be incorporated by Resolution.

3. **Continuing compliance.** The Company shall use commercially reasonable efforts to maintain compliance with the DAO Act, the LLC Act (as applicable), the DAO Regulations, and any Registrar requirements or guidance. If future amendments or interpretations require updates to the Company Agreement, the Representative Agent shall cause those updates to be proposed for adoption by Resolution as soon as reasonably practicable. Notwithstanding the foregoing, where mandatory law requires immediate rectification, the Representative Agent shall effect such rectification without awaiting Resolution, any procedural requirements of this Agreement or Tertiary Instruments notwithstanding, and shall notify Members as soon as practicable thereafter.

Article III — Purpose and Powers

3.1 Purpose

The Company is organized as a for-profit DAO LLC. The purposes of the Company are to:

1. hold, steward, and license Protocol IP;
2. manage the Company's governance through the Governance System, including adopting and amending governance instruments, configuring parameters and treasury allocations, and appointing persons to carry out delegated functions;
3. manage Company Treasury Accounts and any assets in which the Company holds all right, title, and interest; and
4. execute all other lawful acts necessary, desirable, or incidental to the foregoing purposes.

3.2 Powers

Subject to the DAO Act, LLC Act, this Agreement, and valid Resolutions, the Company has the power to:

1. acquire, hold, dispose of, and otherwise deal with assets in Company Treasury Accounts;
2. grant and enforce licenses of Protocol IP;
3. enter into agreements on behalf of the Company;
4. adopt, alter, and use a Company seal, and to cause it or a facsimile (including an electronic or digital reproduction) to be affixed, impressed, or reproduced in any manner on any instrument, certificate, or record of the Company;
5. indemnify persons as permitted herein and under Marshall Islands law; and
6. take any other actions authorized by valid Resolution.

3.3 Execution of Agreements

The Head Steward may execute agreements within the scope of their role as Representative Agent and Senior Managing Official. Subcommittees established under the Founding Charter may execute agreements within the scope of their delegated authority. A cryptographic signature recorded when a person with proper authority signs or approves a blockchain transaction satisfies any requirement for a written signature pursuant to the DAO Act.

Authority to bind the Company is limited to:

- agreements approved by Resolution;

- agreements necessary to fulfill statutory filing and compliance obligations; and
- agreements within the scope of any delegation recorded in the SOP Registry.

No agreement executed under this Section creates any agency, partnership, or joint venture between the Company and any counterparty, or any read-through of the counterparty's activities to the Company, unless the agreement expressly states otherwise and such relationship is approved by Resolution.

3.4 Dissolution

1. The Governance System may, by Resolution, approve an orderly wind-down or dissolution of the Company, including liquidation of assets in Company Treasury Accounts, as permitted by this Agreement and applicable law.
2. Only assets in which the Company holds all right, title, and interest may be treated as available for liquidation or distribution.
3. Any distribution of Company assets on dissolution, including Protocol IP or proceeds thereof, must be calculated on a fully-diluted basis inclusive of all Membership Interests, whether or not subject to lockup or transfer restriction.
4. Any Resolution that affects a dissolution inconsistent with this Section 3.4 is ultra vires to the extent of the inconsistency.

Article IV — Members, Membership Interests, and Limited Liability

4.1 Members and Membership Interests

1. A **Member** is any person admitted as a member under this Agreement, including:
    - any person who holds tokens or other property that confers a voting or economic right in the Company, in accordance with DAO Act §106; and
    - where applicable, the Head Steward solely in the limited capacity of an authorized representative member under Section 8.4(2).
2. A person ceases to be a Member:
    - in the case of a Member whose status arises from tokens or other property conferring voting or economic rights, when they transfer, sell, or alienate all such tokens or property and retain no further right of ownership therein; and
    - in the case of the Head Steward serving as an authorized representative member under Section 8.4(2), upon cessation of the Head Steward role or when Category C is no longer applicable.
3. A **Membership Interest** is a personal contractual right and does not represent a share of corporate stock, partnership interest, or security under any jurisdiction, unless required by that jurisdiction's mandatory law.

    Characterization of Membership Interests or Membership Tokens under the laws of the Republic of the Marshall Islands is provided solely for purposes of this Agreement and is not a representation regarding characterization under the laws of any other jurisdiction. The Company makes no representation or warranty that Membership Tokens are not securities, commodities, financial products, or similarly regulated instruments outside the Republic of the Marshall Islands.
4. Membership and Membership Interests are determined by token holdings as recorded on the Blockchain System. The Company is not required to maintain a separate register of Members.

4.2 Limited Liability

To the fullest extent permitted by the DAO Act and LLC Act:

1. No Member shall be personally liable for any debts, obligations, or liabilities of the Company solely by reason of being a Member.
2. Creditors of the Company have recourse only to assets held in Company Treasury Accounts, and not to the separate assets of any Member, except where a separate written agreement expressly provides otherwise.

4.3 Covenant of Good Faith

1. Subject to mandatory law, the Members agree that their primary duty to the Company and each other is the contractual covenant of good faith and fair dealing (DAO Act §109), not a generalized fiduciary, partnership, or agency duty.
2. Each Member agrees to exercise governance and proposal rights in good faith and with a primary intent to benefit the Company, rather than to expropriate or deliberately harm other participants.
3. Nothing in this Agreement prevents a Member from pursuing independent business opportunities unrelated to the Company, provided that they do not misuse Confidential Information or assets of the Company. This Section does not grant any license to Protocol IP.
4. No Member has authority to bind, represent, or speak on behalf of the Company solely by reason of being a Member. Any representation that a Member is acting on behalf of the Company without authorization by Resolution and by the Head Steward is unauthorized and does not bind the Company.

4.4 No Obligation to Violate Law

No Member or Head Steward shall be obligated under this Agreement to implement or comply with any Resolution or instruction that would result in a violation of applicable mandatory law in any jurisdiction to which such person is subject.

4.5 Excluded Persons and Prohibited Property

1. The following persons are not eligible to be Members and any purported Membership Interest held by such person is void:
    - any person subject to sanctions administered by the United States Office of Foreign Assets Control (OFAC), the United Nations Security Council, the European Union, or the United Kingdom;
    - any person identified on a sanctions list maintained by the Republic of the Marshall Islands or notified to the Company by the Registrar;
    - any politically exposed person where, in the reasonable determination of the Head Steward, such person's membership would expose the Company or other Members to material legal, regulatory, or reputational risk; and
    - any other person whose membership would, in the reasonable determination of the Head Steward, cause the Company or other Members to be subject to extraterritorial legal action, sanctions, or enforcement.

2. The Company shall not accept capital contributions, distributions, or any transfer of property from or to any Excluded Person. Any such transfer is void and must be reversed or blocked to the extent technically feasible.
3. If a Member becomes an Excluded Person after admission, their Membership Interest is automatically suspended. The Head Steward shall take reasonable steps to effect dissociation and prevent further participation by such person.
4. The Head Steward may maintain a non-public register of Excluded Persons for compliance purposes. Such register is Confidential Information.
5. No Member, the Head Steward, or the Company shall be liable for good-faith determinations under this Section, even if a determination is later found to be incorrect.
6. The Company shall not accept any property that is, as determined by the Head Steward:
    - stolen, misappropriated, or the proceeds of unlawful activity;
    - subject to seizure, forfeiture, or legal dispute;
    - tainted by association with sanctioned persons, illicit markets, or money laundering; or
    - otherwise likely to expose the Company or other Members to legal, regulatory, or reputational risk.

    Any purported transfer of such property to the Company is void. The Head Steward may take reasonable steps to block, reverse, or quarantine any such property to the extent technically feasible.
7. For purposes of accepting capital contributions, administering any Company-recognized claim process, implementing Company-facilitated distributions, or carrying out any Company-facing treasury interaction, the Head Steward and/or any Subcommittee acting within its mandate under the Founding Charter (including the Company Treasury Subcommittee, where applicable) may require reasonable compliance conditions, including identity verification, sanctions screening, beneficial-ownership information, source-of-funds or source-of-wealth information, tax documentation, jurisdictional or residency attestations, wallet screening, proof of control of receiving addresses, and use of designated submission procedures.
8. If a person fails or refuses to satisfy a compliance condition reasonably imposed under this Agreement or required by applicable law, the Company, acting through the Head Steward and/or a duly authorized Subcommittee, may, to the extent reasonably necessary and technically feasible reject, defer, suspend, quarantine, return, or route the relevant contribution, claim, or Company-facilitated distribution through an approved lawful process or intermediary. Any such action taken in good faith for compliance or risk-management purposes is not a breach of this Agreement.
9. The Company may, by Resolution or where required by applicable law, adopt additional compliance mechanics for future Company-facing interactions, including geofencing, attestations, whitelisting, Company-recognition and claim gating, claim procedures, deadlines, Company-interface access controls, or designated intermediaries for distributions or treasury interactions. For avoidance of doubt,

such mechanics govern Company-facing and Company-facilitated processes and do not, by themselves, imply direct technical control over autonomous on-chain transfers or independent third-party programs. No Member is entitled to any particular distribution channel, settlement rail, wallet, interface, or timing except as expressly provided in a Distribution Resolution and subject to this Agreement and mandatory law.

10. No prior acceptance of a contribution, no prior distribution practice, no prior claim practice, and no historical absence of screening, geofencing, or documentation requirements creates a waiver, estoppel, or continuing obligation to maintain the same process for future transactions or distributions.

Article V — Capital and Company Property

5.1 Capital Contributions

1. The Company may accept capital contributions in the form and amount determined by Resolution.
2. A Member is not obligated to make additional capital contributions unless agreed in writing and approved by Resolution.
3. No Member is entitled to interest on any capital contribution.

5.2 Company Property

Company Property consists solely of:

1. assets held in Company Treasury Accounts;
2. Protocol IP and related rights assigned or licensed to the Company; and
3. any claims, rights, or receivables held by the Company under written agreements.

The Company's powers extend only to Company Property. The Company does not own, custody, or control any assets solely by reason of those assets interacting with any Implementation.

5.3 Distributions

1. The Company's initial treasury was contributed through the token launch process, in exchange for which contributors received tokens conferring Membership Interests. Such contributions and the issuance of Membership Interests are governed by the DAO Act and are not subject to securities laws of the Republic of the Marshall Islands.
2. Company Property may be augmented by license fees, revenues from the Company's activities as principal with its own assets, and any other lawful sources. The Company acts as principal in all treasury activities and does not act as agent, custodian, or service provider.
3. Distributions, if any, may only be made from Company Property, subject to solvency requirements under applicable law.
4. Distributions are made only pursuant to Resolution and, where applicable, execution of the relevant Execution Bundle.
5. A Resolution approving a distribution (a **"Distribution Resolution"**) may specify eligibility conditions, timing, procedures, claim mechanics, deadlines, reserves, withholding, staged settlement, designated intermediaries, designated receiving wallets, documentation requirements, and other operational or compliance conditions for that distribution event, provided such terms are not inconsistent with

mandatory law or the protected provisions of this Agreement.

6. The Company may condition any Company-facilitated distribution on compliance requirements reasonably imposed under this Agreement, applicable law, or a Distribution Resolution, including identity verification, sanctions screening, beneficial-ownership information, tax forms, source-of-funds information, jurisdictional or residency attestations, wallet screening, and proof of control of receiving addresses.
7. If a Member or claimant fails to satisfy applicable distribution conditions, the Company, acting through the Head Steward and/or a duly authorized Subcommittee (including the Company Treasury Subcommittee where applicable), may defer, withhold, suspend, quarantine, return, or otherwise not complete that Company-facilitated distribution to such person unless and until the conditions are satisfied or the Distribution Resolution provides another lawful outcome. A good-faith compliance hold, delay, or refusal under this Section is not a breach of this Agreement and does not create any personal liability for the Head Steward or any Subcommittee Member acting within scope.

   For avoidance of doubt, this Section governs Company-recognized or Company-facilitated distribution processes and does not create any implication that the Head Steward may unilaterally revoke, amend, or override autonomous on-chain execution by the Governance System or by independent third-party programs outside the Company's direct control.
8. No Member has a fixed right to any distribution, to any recurring distribution program, or to any particular distribution channel or settlement timing. The Company may retain assets to build reserves.
9. Any distribution may have tax, accounting, or reporting consequences. Each Member is responsible for their own compliance.

Company compliance mechanics govern only Company-facing recognition, claim handling, and Company-facilitated settlement processes, and do not invalidate or reverse autonomous on-chain state changes outside the Company's control.

Article VI — Governance and Execution Bundles

6.1 Governance System and Resolutions

1. The Governance System (Futarchy) is the primary mechanism by which the Company adopts Resolutions and directs the use of Company Treasury Accounts.
2. A Resolution is valid only if:
    - it is adopted according to the rules set out in the Founding Charter and any subsequently adopted governance instruments; and
    - any required Execution Bundle is executed on Solana.
3. To the extent permitted by law, the acts taken under a valid Execution Bundle are treated as acts of the Company.

6.2 Member Responsibilities Regarding Execution Bundles

Each Member is expected to review, or cause to be reviewed, the Execution Bundles associated with proposals they support, including deserialized instructions and address lookup tables. Reliance on high-level summaries does not override Execution Bundles.

6.3 Amendments to Governance Rules

1. The Company may adopt or amend governance procedures via Resolution, provided such rules are consistent with this Agreement and applicable law.
2. In case of conflict, this Agreement and the Founding Charter override any lower-level governance documentation.

6.4 Governance Continuity

If the Futarchic Mechanism or any component of the Governance System becomes unavailable, non-functional, legally impermissible, or otherwise unsuitable for continued use, the Company may by Resolution designate a successor mechanism or system that substantially preserves the market-based governance principles set forth in this Agreement and the Founding Charter. Such designation shall not constitute an amendment to this Agreement, provided the successor mechanism operates consistently with the spirit and intent of the original Governance System.

6.5 Amendments to the Company Agreement

1. This Agreement and other Primary Instruments may be amended only by Resolution that:
    - expressly identifies the instrument and provisions to be amended;
    - sets out the full text of the amendment; and
    - is approved by the Governance System.
2. Any Resolution that purports to replace this Agreement or any Primary Instrument in its entirety must:
    - remain open for voting for not less than fourteen (14) days; and
    - include a plain-language summary of the material changes and their effect.

    Wholesale replacement of Primary Instruments should be undertaken only where necessary for regulatory compliance, structural reorganization, or similar extraordinary circumstances.
3. Secondary Instruments may be amended by Resolution.
4. Tertiary Instruments may be created or amended from time to time and recorded in the SOP Registry on an interim basis. A Tertiary Instrument (or amendment) is not binding on the Company unless and until ratified by Resolution or through an Operational Pack approved by the Governance System (as provided in the Founding Charter), and any Tertiary Instrument remains subject to objection, supersession, or repeal by Resolution. Pending ratification, any Tertiary Instrument is guidance only and does not expand the authority of any person or Subcommittee or modify any Primary or Secondary Instrument.
5. No amendment is effective until any required Execution Bundle is executed and the amended instrument is recorded in the SOP Registry in accordance with the Founding Charter.

6.6 Registry Maintenance and Filing

The Smart Contract Registry and Website Registry must be maintained current for purposes of annual filings required by the DAO Act.

The Head Steward may update these registries for filing purposes to reflect:

1. technical corrections;
2. changes previously approved by Resolution; and
3. changes required to maintain accuracy of filed information.

The Head Steward may not:

1. materially alter the structure or format of any registry;
2. add or remove entries except as approved by Resolution or required for accuracy;
3. misrepresent the contents of any registry; or

4. use filing authority to expand the scope or authority of any instrument.

Any material change to a registry requires Resolution. The structure and format of Company Agreement instruments are Protocol IP and may not be replaced or altered except by Resolution.

6.7 Secondary Registers and Record-Keeping Updates

1. Secondary Instruments may be amended only by Resolution in accordance with Section 6.5(3).
2. Notwithstanding Section 6.5(3), where a Secondary Instrument is a registry or register that is primarily a record of identifiers, entries, or agreements, the Head Steward or any authorized Subcommittee acting within its mandate under the Founding Charter (including the Company Treasury Subcommittee acting within its authority) may make record-keeping updates to that registry/register, provided that:
   (a) the update does not materially alter the structure, format, or governing rules of the registry/register;
   (b) the update does not expand the scope, authority, or legal effect of any instrument;
   (c) entries are added, removed, corrected, or refreshed solely to reflect (i) actions taken pursuant to authority under the Company Agreement (including agreements entered into within delegated authority), or (ii) changes required to maintain accuracy of the record; and
   (d) the update is recorded in the SOP Registry and is submitted for ratification in the next Operational Pack (or as otherwise provided in the Founding Charter).
3. Emergency record-keeping updates required to mitigate a security incident, exploit risk, or imminent harm to Company Treasury Accounts may be made and recorded as soon as reasonably practicable, and must be submitted for ratification in the next Operational Pack.
4. Any Member may propose a Resolution objecting to, reversing, or superseding a record-keeping update.
5. Any material change to the structure, format, or governing rules of a Secondary registry/register requires Resolution.

Article VII — Dissociation and Transfer of Interests

7.1 Dissociation

1. A Member dissociates from the Company when they transfer, sell, or alienate all tokens that confer voting or economic rights in the Company and retain no further ownership, in accordance with DAO Act §106.
2. A Member may also be dissociated by Resolution if they become an Excluded Person under Section 4.5.
3. On dissociation, the former Member:
    - ceases to hold any Membership Interest;
    - retains any tokens they hold in their own wallets (subject to on-chain program logic); and
    - remains bound by any confidentiality or non-circumvention obligations incurred while a Member.

7.2 Transfers

1. Membership Interests are represented by tokens and transfer with the tokens on the Blockchain System.
2. Any transfer to an Excluded Person is void and does not make the transferee a Member.

7.3 Company Sale

1. For purposes of this Section, **"Voting Supply"** means all tokens conferring voting rights in the Company, excluding:
    - tokens subject to lockup or transfer restriction that cannot be exercised at the relevant time; and
    - tokens held in Company Treasury Accounts.
2. A **"Company Sale"** means any transaction or series of transactions that results in:
    - a transfer of more than fifty percent (50%) of the Voting Supply;
    - a merger, consolidation, or reorganization in which the Members immediately prior do not retain majority control; or
    - a sale, exclusive license, or disposition of all or substantially all Protocol IP.
3. Any distribution of Company property on a Company Sale, including Protocol IP or proceeds thereof, must be calculated on a fully-diluted basis inclusive of all tokens, whether or not subject to lockup or

transfer restriction, but excluding tokens held in Company Treasury Accounts.

4. A Company Sale shall not be used to exclude tokens subject to lockup from economic participation. Any Resolution effecting a Company Sale that fails to account for all tokens on a fully-diluted basis is beyond the scope of the Company's authority.
5. Allocation of sale consideration is a mechanical calculation only. It does not create any trust, fiduciary arrangement, or equitable interest. It does not create fiduciary duties, duties of care, or duties to maximize sale price.
6. No purchaser or successor assumes any obligation under the Company Agreement unless expressly stated in the definitive sale documents.

Article VIII — Tax, Regulatory, and Compliance Matters

8.1 No Tax Agent or Withholding Role

1. The Company does not, and shall not, act as tax agent, tax preparer, or withholding agent for Members.
2. Each Member is solely responsible for determining, reporting, and paying any taxes arising from their Membership Interest or activities in connection with the Company.

8.2 No Professional Advice or Services

1. Nothing in the Company Agreement constitutes investment, financial, legal, tax, accounting, actuarial, insurance, lending, programming, security, medical, or other professional advice.
2. The Company does not and shall not:
    - recommend that any person buy, sell, or hold tokens;
    - act as financial adviser, broker-dealer, insurance broker, lender, creditor, or equivalent regulated intermediary;
    - provide legal, tax, accounting, actuarial, insurance, or lending services; or
    - undertake any duty to monitor individual suitability, risk tolerance, or compliance.
3. Members are expected to have technical and financial sophistication appropriate for participation in a DAO LLC and must obtain independent professional advice where appropriate.

8.3 Beneficial Ownership and AML

1. Where any applicable anti-money laundering, counter-terrorist financing, or sanctions regime requires identification of a beneficial owner holding more than twenty-five percent (25%) of the ownership or voting rights in the Company, the Head Steward may decline to carry out any Company-facilitated filing, payment, agreement execution, counterparty onboarding, contribution processing, treasury interaction, or distribution step (and may defer or route such Company-facilitated process through a lawful compliance path) where the Head Steward reasonably believes the relevant action is controlled by or given on behalf of a person who:
    - holds more than twenty-five percent (25%) of the ownership or voting rights; and
    - has failed to provide information necessary to satisfy applicable beneficial-ownership requirements, or cannot be reasonably identified.
2. Any such refusal to act is not a breach of this Agreement, provided the Head Steward acts in good faith and notifies the Company of the reasons.

3. Where no natural person is reportable under Category A or Category B of the Beneficial Owner Information Report, the Head Steward, in the limited role set out under Section 8.4(1), serves as the Company's authorized representative member for BOIR/Form 2 Category C purposes in accordance with Section 8.4(2). This designation is a transparency and statutory-reporting construct only and does not confer economic ownership, voting rights, or operational control.
4. In carrying out Sections 4.5 and 5.3, the Head Steward and, where applicable, any duly authorized Subcommittee acting within its mandate under the Founding Charter (including the Company Treasury Subcommittee) may coordinate with regulated service providers, analytics providers, custodians, transfer agents, paying agents, exchanges, OTC counterparties, trustees, escrow agents, legal counsel, and other compliance or operational counterparties as reasonably necessary to implement lawful contribution, screening, treasury, or distribution processes. Such coordination does not, by itself, create a fiduciary duty to any Member, a duty to complete any distribution, or any representation that a person is eligible in any jurisdiction.

8.4 Head Steward — Limited Role and Protections

1. **Role.** The Head Steward serves as the Company's Representative Agent and Senior Managing Official. The Head Steward:
    - acts solely in a representative, statutory-compliance capacity;
    - does not, solely by virtue of such appointment, become a Member or acquire any Membership Interest; and
    - has no authority to bind the Company except as provided in Section 3.3.
2. **Authorized Representative Member (BOIR Category C).** Where no natural person is reportable under Category A or Category B of the Beneficial Owner Information Report, the Head Steward, in the limited role set out under Section 8.4(1), is designated and admitted as an authorized representative member solely for BOIR/Form 2 Category C and related statutory reporting. Such designation and admission:
    - confers 0% Membership Interest unless otherwise expressly approved by Resolution;
    - confers no voting, governance, economic, distribution, or proposal rights;
    - does not count toward quorum or voting thresholds;
    - does not expand the Head Steward's authority beyond this Section 8.4 and Section 3.3; and
    - terminates automatically upon the Head Steward ceasing to hold office or upon a natural person becoming reportable under Category A or Category B.
3. **Limited Duties.** The duties of the Head Steward are strictly limited to:
    - preparing and filing beneficial-ownership and regulatory reports;
    - receiving and responding to regulatory notices addressed to the Company;
    - executing agreements within the scope of Section 3.3;

- coordinating with legal counsel, service providers, and counterparties to satisfy applicable AML, sanctions, and corporate-transparency requirements for Company-facing processes; and
- carrying out ministerial documentation, notice, and filing steps assigned under this Agreement or a valid Resolution.

The Head Steward has no duty to propose or vote on governance measures, no unilateral authority (solely by reason of the Head Steward role) to direct the use of Company Treasury Accounts or override a valid Resolution or Execution Bundle, and no duty to provide professional advice to Members.

4. **No Apparent Authority.** Solely by reason of holding the Head Steward role, including any designation as an authorized representative member for BOIR/Form 2 Category C, the Head Steward is not an agent, director, officer, trustee, or manager with authority to exercise discretionary control over Protocol IP, the Governance System, or Company Treasury Accounts beyond the scope of Section 3.3.
5. **Indemnification.** To the fullest extent permitted by law:

    - the Head Steward is entitled to be indemnified, defended, and held harmless by the Company in respect of any losses, liabilities, claims, damages, costs, and expenses (including reasonable attorneys' fees) incurred in connection with good-faith performance of the Head Steward role, except to the extent arising from Fraud or Willful Misconduct;
    - such indemnity extends to costs of responding to regulatory or law-enforcement enquiries concerning the Company; and
    - the Company shall advance reasonable costs incurred by the Head Steward in defending any such matter, upon receipt of an undertaking to repay if indemnification is ultimately unavailable.

    Indemnification obligations are payable solely from Company Property.
6. **Filing Obligations.** The Company shall comply with DAO Act §112, including maintaining up-to-date Beneficial Owner Information Reports. The Head Steward, as Representative Agent and Senior Managing Official, is the default natural person for filing and reporting coordination. Where Category C is applicable, the Head Steward, in the limited role set out under Section 8.4(1), serves as the Company's authorized representative member for BOIR purposes in accordance with Section 8.4(2).

8.5 Subcommittees

The Founding Charter may establish Subcommittees with delegated authority to act within defined scope on matters concerning the Company. The Founding Charter shall specify the composition, appointment, removal, and scope limitations for each Subcommittee. Subcommittee actions within delegated scope are acts of the Company.

8.6 Regulatory Contingency; Future Compliance Positioning

1. The Company may, by Resolution, adopt prospectively applicable policies, procedures, and mechanics for capital contributions, transfer-related claim processes, treasury interactions, and distributions in order to address legal, regulatory, sanctions, tax, banking, exchange, counterparty, or operational requirements in any relevant jurisdiction.
2. Such prospective mechanics may include, without limitation, KYC/KYB processes, beneficial-ownership identification, source-of-funds checks, tax forms, sanctions screening, jurisdictional eligibility attestations, geofencing, whitelisting, claim windows, use of designated intermediaries, use of paying agents or escrow arrangements, and staged or conditional distribution processes.
3. The adoption or use of any compliance or distribution mechanic under this Section:
    - is a protective and administrative measure only;
    - does not, by itself, convert the Company into an agent, custodian, broker, dealer, exchange, investment adviser, trustee, or fiduciary;
    - does not create any assurance that a distribution will be made in any jurisdiction or to any person; and
    - does not waive any existing disclaimer, allocation of responsibility, or limitation of duties in the Company Agreement.
4. Where a proposed or approved action requires a Company-facilitated off-chain execution path (including any path involving a regulated intermediary, payment rail, counterparty, escrow, or transfer agent), the Company may defer, stage, reroute, or decline that Company-facilitated path unless and until lawful execution mechanics, counterparty requirements, and applicable compliance steps are satisfied. Any such action taken in good faith is not a breach of this Agreement.
5. Nothing in this Section grants the Head Steward or any Subcommittee unilateral authority to amend the Governance System, invalidate a valid Resolution, or represent that autonomous execution by the Governance System or independent third-party programs can be prevented where the Company lacks direct technical control. This Section governs Company-facing, Company-facilitated, and Company-recognized processes only.

Article IX — Intellectual Property

9.1 Intellectual Property Licensing

1. The Company may license Protocol IP under agreements approved by Resolution, or pursuant to authority delegated under the Founding Charter to the Head Steward or any Subcommittee established under it acting within its mandate. Any such arrangement shall be recorded in the SOP Registry and is subject to ratification in accordance with the Founding Charter.
2. Any license shall:
    - preserve the Company's Protocol IP ownership;
    - allocate responsibility for regulatory compliance to the licensee; and
    - not make the Company an operator of the licensee's business.
3. The IP License Framework sets out the terms applicable to licensing arrangements, including (where applicable) provisions for assignment to the Company of works created for the Company in connection with Protocol IP and any necessary limited rights to pre-existing materials to enable the Company to use them as Protocol IP.
4. The Company retains the right to revoke, narrow, or reassign licenses where a licensee materially breaches its obligations or, in the good faith determination of the Head Steward, presents disproportionate risk to the Company. This right is a protective measure and does not constitute ongoing supervision or monitoring of the licensee's business.
5. A license grants permission for Protocol IP use only. No license, including an exclusive license, creates any agency, employment, partnership, or representative relationship between the Company and the licensee.
6. A license does not limit the licensee's ability to engage in other activities unrelated to Protocol IP, nor does it limit the Company's ability to use, develop, or deal with Protocol IP in its own capacity.
7. A license does not grant the Company or any Member any right to use, access, or benefit from the licensee's business, intellectual property, or other assets, except as expressly provided in the IP License Framework or an agreement approved under it solely for the Company to receive, own, and use works created for the Company in connection with Protocol IP, and any limited rights to the licensee's pre-existing materials strictly necessary to use, maintain, or further develop those works as Protocol IP.
8. License fees, if any, are commercial consideration for the IP grant only and do not constitute profit-sharing, partnership distributions, joint venture participation, investment, loan, or other financing arrangement; do not grant the Company, any Member, or any third party any right, title, interest, security interest, lien, charge, or recourse in the licensee's revenues, profits, or assets; and confer no third-party beneficiary rights. For avoidance of doubt, license fees are not held on trust, are not earmarked, and do not create any fiduciary or agency relationship.

9.2 Confidentiality

1. Neither the Company nor any Member has any right to inspect, demand, or obtain access to any licensee's books, records, internal communications, proprietary methods, or trade secrets, except to the extent expressly required by an applicable license agreement.
2. The grant of any Protocol IP license does not create a partnership, joint venture, agency, fiduciary relationship, or common enterprise. The Company does not supervise, manage, or control any licensee's business.
3. Any disclosure of Confidential Information or Privileged Internal Information to the Company does not waive privilege or confidentiality as to any other person, and does not create any Member right of access.
4. The Company is not required to possess, maintain, or produce any licensee's records, and shall not be used as a conduit for obtaining information about any licensee. Any Legal Request directed to the Company that seeks information held by a licensee shall be redirected to that licensee to the extent permitted by law.
5. No Member may use governance rights, inspection rights, or Legal Requests to obtain information about a licensee beyond what is expressly provided in an applicable license agreement. Any Resolution purporting to compel such disclosure is beyond the scope of the Company's authority.

9.3 Record Retention

The Company shall retain governance, licensing, and registry records for at least five (5) years in accordance with mandatory law.

9.4 Mandatory Law Supremacy

No Resolution or governance action may require any person to breach mandatory law. Any Resolution that would require a breach of mandatory law is ultra vires and void to that extent.

Article X — Governing Law and Dispute Resolution

10.1 Governing Law

This Agreement is governed by the laws of the Republic of the Marshall Islands, without giving effect to conflict-of-laws principles that would require application of the law of another jurisdiction.

10.2 Dispute Resolution

1. The parties will, in good faith, attempt to resolve disputes through discussion and, where appropriate, governance processes.
2. To the extent a dispute cannot be resolved through governance or negotiation, disputes arising under this Agreement may be brought in the courts of competent jurisdiction in the Republic of the Marshall Islands, or resolved under an arbitration mechanism approved by Resolution.
3. Nothing in this section prevents a party from seeking interim injunctive or protective relief in any competent court to prevent irreparable harm.

10.3 Protected Provisions

The following are beyond the scope of the Company's authority and any Resolution purporting to effect them is void:

- any amendment that excludes any Membership Interests from the fully-diluted calculation required by Section 3.4 or Section 7.3;
- any action whose primary purpose or material effect is to deliberately deprive Members of their Membership Interests or the rights attached thereto, whether by selective issuance or other discriminatory means; or
- any amendment to this Section 10.3, except as provided below.

This Section 10.3 protects the calculation methodology only. It does not confer Membership, Membership Interests, or any beneficial or equitable interest on any lockup arrangement or any person associated therewith.

This Section 10.3 may be removed or superseded by Resolution only if no Membership Interests subject to lockup established at formation remain outstanding. Membership Interests that are irrecoverable due to key loss, program restrictions, or similar technical circumstances are not considered outstanding for this purpose.

10.4 Impossibility and Emergency Action

1. The Company is not liable for failure to perform any obligation under this Agreement to the extent performance is impossible due to program malfunction, exploit, key compromise, network failure, or similar circumstances beyond the Company's reasonable control.
2. In the event of imminent material harm to Company Property or Membership Interests, the Head Steward or any Subcommittee with delegated authority under the Founding Charter may take reasonable protective action without prior Resolution, provided that:
    - the action is narrowly tailored to address the emergency;
    - the person or Subcommittee acts in good faith;
    - the action is reported to Members as soon as practicable; and
    - the action is submitted for ratification in the next Operational Pack.
3. Emergency action under this Section does not permit circumvention of Section 10.3 (Protected Provisions).

Article XI — Miscellaneous

11.1 Entire Agreement

This Agreement, together with the other instruments of the Company Agreement, constitutes the entire agreement between the Company and its Members and supersedes all prior understandings relating to its subject matter.

The Company Agreement comprises:

- **Primary Instruments:** this Operating Agreement, the Founding Charter, and the IP License Framework;
- **Secondary Instruments:** the Smart Contract Registry, Website Registry, Intellectual Property Registry, IP License & Assignment Register, and the Counterparty Agreements Register; and
- **Tertiary Instruments:** the SOP: Order of Business for Operational Packs, and the SOP Registry.

The Company Agreement and all instruments incorporated by reference constitute Protocol IP. Unauthorized use, reproduction, or adaptation is an infringement of the Company's intellectual property rights and may be enforced by the Company.

11.2 Severability

If any provision of this Agreement is held invalid, illegal, or unenforceable in any jurisdiction, that invalidity or unenforceability shall not affect other provisions or applications of this Agreement that can be given effect. This Agreement shall be construed to give effect to the intent of the parties to the maximum extent permitted by law.

11.3 Counterparts and Electronic Signatures

This Agreement may be executed in counterparts and by electronic signature. Cryptographic signatures, hashes, or content identifiers are sufficient evidence of assent and integrity.

Use or non-use of a Company seal does not affect the validity or enforceability of any instrument, act, or record of the Company except to the extent mandatory law expressly provides otherwise.

11.4 No Third-Party Beneficiaries

No person other than the Company and its Members has any right, claim, or cause of action under or arising from this Agreement. No prior agreement, representation, or course of dealing creates any third-party right against the Company. No person may enjoin, interfere with, or assert any claim against the Company based on any relationship or arrangement not expressly set forth in the Company Agreement.

11.5 Member Compliance

Each Member is solely responsible for ensuring that their participation in the Company complies with all laws applicable to them. The Company does not undertake any duty to monitor or ensure such compliance on any Member's behalf. The Company does not assume any obligation of any Member, does not act as agent for any Member, and does not indemnify any Member for any failure to comply with laws applicable to that Member.

11.6 Jurisdiction

Neither the Company nor the Head Steward agrees that the mere residence, citizenship, or location of any Member shall, by itself, subject the Company or the Head Steward to supervisory jurisdiction, licensing, registration, reporting, or tax obligations in that Member's jurisdiction.

11.7 Anti-Reliance; No Duty to Update

Each Member acknowledges that, in entering into this Agreement, such Member has not relied on any statement, representation, warranty, forecast, projection, valuation, roadmap, marketing material, social-media communication, community message, third-party commentary, or other communication not expressly set forth in the Company Agreement.

Without limitation, no historical launch material, protocol discussion, governance commentary, market commentary, or third-party communication (including communications by persons associated with MetaDAO or any governance venue) modifies the Company Agreement or creates any present or future duty of the Company to make distributions, maintain any particular compliance posture, or permit participation from any particular jurisdiction or person.

No person has any duty to update any information or statement.

11.8 No Oral Modification

No amendment, modification, waiver, or consent is effective unless in a writing adopted in the manner required by this Agreement. There are no oral modifications and no modification by course of dealing.

11.9 No Implied Covenants; No Estoppel; No Expansion by Conduct

To the maximum extent permitted by law:

1. no implied covenant other than the implied contractual covenant of good faith and fair dealing expands obligations beyond the express terms of the Company Agreement;
2. no usage of trade, course of dealing, course of performance, silence, delay, partial performance, marketing, or community communications creates or expands obligations; and
3. no estoppel, quasi-estoppel, or similar equitable doctrine may be asserted to create any right or obligation not expressly stated; and
4. no historical practice, including prior acceptance of contributions, prior treasury actions, or prior distributions without screening or documentation, creates any continuing right to the same process for future Company interactions.

11.10 Waiver Only by Signed Writing

No failure, delay, or partial exercise of any right constitutes a waiver. Any waiver must be express and in a signed writing adopted in the manner required by this Agreement. A waiver on one occasion does not operate as a waiver on any other occasion.

11.11 Official Governance Venues

Official governance venues designated in the Website Registry are provided for Member communication and governance participation only. No information, content, statement, or material published on or through any official governance venue, website, or on-chain record, whether by the Company, the Head Steward, any Member, or any other person, shall be taken to bind the Company, create any obligation, or constitute a representation or warranty by the Company, unless such information is expressly set forth in the Company Agreement.

The designation of a website or other property as an official governance venue does not make the content of that venue part of the Company Agreement or Protocol IP.

Founding Charter
of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This Charter takes effect on the Effective Date of the Company's Certificate of Formation.

PRIMARY INSTRUMENT. This Founding Charter is a binding primary instrument of the Company Agreement and governs member rights, Subcommittees, oversight mechanisms, and delegated authority.

Not the Registrar-issued Corporate Charter. This Founding Charter is an internal governance instrument. It is not the Registrar-issued Corporate Charter that accompanies the Certificate of Formation under DAO Act §717 and the DAO Regulations, and does not replace or purport to be that Registrar-issued instrument.

NOTICE OF RESTRICTIONS ON DUTIES AND TRANSFERS

The rights of members in a decentralized autonomous organization may differ materially from the rights of members in other resident domestic or non-resident domestic limited liability companies. This Chapter, underlying smart contracts, certificate of formation and limited liability company agreement, if applicable, of a decentralized autonomous organization may define, reduce or eliminate fiduciary duties and may restrict transfer of ownership interests, withdrawal or resignation from the decentralized autonomous organization, return of capital contributions and dissolution of the decentralized autonomous organization.

This Founding Charter is intended to comply with the Decentralized Autonomous Organizations Act of 2022 (as amended) (the "DAO Act"), the Limited Liability Company Act, 1996 (as amended) (to the extent not superseded by the DAO Act), and the Decentralized Autonomous Organization Regulations 2024 (the "DAO Regulations").

Under the DAO Act, this Charter, and the Operating Agreement, fiduciary and other duties (including duties of care and loyalty) may be reduced, eliminated, or defined differently, but the implied contractual covenant of good faith and fair dealing cannot be eliminated.

Anyone acquiring Membership Interests must carefully review the Company Agreement in full and consider obtaining independent legal or professional advice.

Article I — Purpose and Scope

1.1 Purpose

The purpose of the Company is to:

1. hold, steward, protect, and license Protocol IP;
2. adopt and maintain internal governance instruments and registries;
3. direct the use of Company Treasury Accounts through the Governance System; and
4. establish member rights, Subcommittees, oversight mechanisms, and delegated authority.

1.2 Intellectual Property Firewall

1. **"Protocol"** in this Charter has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.
2. Protocol IP is licensed under terms that require licensees to comply with applicable law and assume responsibility for their own deployments and operations. The Company does not operate, control, administer, or maintain any deployment of Protocol IP and shall not be deemed to do so. Licensee conduct is independent and is not attributable to the Company.
3. Adoption of this Charter or any Resolution does not obligate the Company to operate, provide, maintain, or support any deployment or service. No such obligation should be inferred from treasury directions or governance documentation.

1.3 Scope of this Charter

This Charter:

1. supplements member rights and participation established in the Operating Agreement;
2. establishes Subcommittees and their authority;
3. establishes oversight and transparency mechanisms; and
4. sets standards of conduct for persons exercising authority under the Company Agreement.

This Charter is part of the Company Agreement and must be interpreted as a whole with the other instruments of the Company Agreement.

1.4 Member Rights in Protocol IP

Protocol IP is Company Property. Members benefit from Protocol IP through their Membership Interests. No Member has any individual right to use, license, or dispose of Protocol IP except as expressly provided by Resolution or under the IP License Framework.

Article II — Definitions

Terms defined in the Operating Agreement have the same meaning in this Charter unless otherwise specified.

2.1 Subcommittee

"Subcommittee" has the meaning given in the Operating Agreement. For clarity, Subcommittees include Subcommittees established by this Charter and Subcommittees established by Resolution under Article IV.

2.2 Subcommittee Member

A **"Subcommittee Member"** is a person appointed to serve on a Subcommittee. Only Members may serve on Subcommittees unless this Charter or a Resolution expressly permits otherwise.

2.3 Authority

The Head Steward and each Subcommittee exercise only the authority granted by the Operating Agreement, this Charter, and applicable Resolutions.

The Head Steward is authorized to act within the scope of Section 3.3 of the Operating Agreement.

Each Subcommittee is authorized to act only within its defined scope. Subcommittee composition and operational details are Confidential Information, except to the extent disclosure is required by mandatory law.

2.4 Oversight Mechanism

An **"Oversight Mechanism"** is a procedure established by this Charter or by Resolution to review, audit, or verify the activities of persons exercising authority, including Audit Subcommittees and confidential review procedures.

Article III — Member Conduct

3.1 Member Rights

Member rights are established in the Operating Agreement. This Charter supplements but does not limit those rights.

3.2 Good Faith Covenant

Members acknowledge that their core duty to the Company is the contractual covenant of good faith and fair dealing, and not any broader fiduciary duty, partnership, or agency obligation.

3.3 Governance Integrity

Each Member agrees to exercise governance rights in good faith and with a primary intent to benefit the Company, rather than:

1. expropriating, harassing, or deliberately harming other Members; or
2. attempting to coerce or improperly influence persons exercising authority outside the mechanisms defined in the Company Agreement.

3.4 Bad Faith

Disagreement over policy or direction is not bad faith. Bad faith includes:

1. using governance to pursue personal vendettas or to deliberately impair the economic value or goodwill of Protocol IP;
2. knowingly proposing or supporting actions that would violate mandatory law;
3. intentionally misrepresenting the meaning or effect of a proposal;
4. proposing or supporting governance actions whose primary purpose is to promote unlawful conduct or non-compliance with mandatory legal obligations; or
5. engaging in harassment, spam, or knowingly false statements in governance venues where the primary purpose is to coerce outcomes or damage reputation.

3.5 Exit, Not Sabotage

Membership is voluntary. A Member who no longer wishes to be bound by the Company's decisions may dissociate in accordance with the Operating Agreement. Exit, not sabotage, is the expected remedy for irreconcilable disagreement.

3.6 Fairness is Policy Guidance

Any references in the Company Agreement to fairness, parity, or non-discrimination are policy guidance only. Such references do not create fiduciary duties and do not create any trust, constructive trust, or equitable ownership by implication.

3.7 Member Sophistication

Each Member acknowledges that:

1. blockchain systems are complex and rapidly evolving;
2. participation requires sufficient understanding to make informed decisions about risk;
3. the Company is not intended for low-information or passive participants;
4. each Member is responsible for monitoring changes to Protocol IP and the surrounding ecosystem; and
5. the Company does not undertake to keep any Member informed or to ensure any Member's knowledge remains adequate.

3.8 No Suitability Obligation

The Company has no obligation to determine whether participation is suitable for any particular person. Participation is undertaken at the Member's own risk and expense.

3.9 No Advice

The Company does not and shall not provide professional advice or services as set out in Section 8.2 of the Operating Agreement. Each Member is solely responsible for obtaining independent advice and for complying with all laws applicable to them.

3.10 Minimum Age and Legal Capacity

Participation is intended only for persons who have reached the age of majority and have full legal capacity under the laws of their jurisdiction. No natural person under eighteen (18) years of age may participate. By acquiring Membership Interests, each natural person represents that they:

1. are at least eighteen (18) years old; and
2. have full legal capacity to enter into binding arrangements.

3.11 Ultra Vires

Proposals and governance actions clearly inconsistent with this Article may be treated as ultra vires and subject to challenge, delay, or non-implementation.

Article IV — Subcommittees

4.1 Establishment of Subcommittees

The Company may establish Subcommittees by Resolution to exercise authority within a defined scope. Each Resolution establishing a Subcommittee shall specify:

1. the scope of the Subcommittee's authority;
2. the composition and appointment mechanism;
3. any limits on the Subcommittee's authority; and
4. the mechanism for removal or dissolution of the Subcommittee.

4.2 Subcommittee Membership

Only Members may serve on Subcommittees unless a Resolution expressly permits otherwise.

Subcommittee Members serve until they resign, are removed by Resolution, or cease to satisfy the eligibility requirements applicable to their appointment.

4.3 Scope Limits

A Subcommittee may act only within the scope specified in the Resolution establishing it and any scope expressly granted by this Agreement for that Subcommittee. Any action outside that scope is beyond the authority of the Subcommittee and does not bind the Company.

4.4 Company Treasury Subcommittee

The Company Treasury Subcommittee is authorized to manage Company Treasury Accounts in the ordinary course of business, subject to policies and limits adopted by Resolution.

For purposes of this Agreement, "**ordinary course of treasury management**" includes, when performed subject to policies and limits adopted by Resolution:

1. maintaining and transacting from Company Treasury Accounts, including establishing, controlling, and administering wallets, accounts, custody solutions (if any), and settlement rails;
2. implementing treasury policies adopted by Resolution;
3. recommending treasury policies and parameters for adoption by Resolution;
4. entering into, administering, and enforcing treasury operational arrangements that are ancillary to treasury management, including (as applicable) minting, burning, reserve, redemption, and settlement

frameworks relating to Company Treasury Assets, and related execution, market-making, liquidity provisioning, settlement, payment, and account services, provided such arrangements are within limits adopted by Resolution; and

5. approving and administering constrained technical access arrangements required to interact with on-chain programs in furtherance of treasury management, including role assignments, allowlists, caps, revocation procedures, and operator appointments, in each case revocable and subject to parameter limits adopted by Resolution.

Any third-party access must be structured to avoid granting unilateral control over Company Treasury Assets or unilateral authority to mint or burn against Company Treasury Assets, and must be revocable.

Preference for on-chain multisig controls. Where feasible, the Treasury Subcommittee shall implement treasury control and authorization through on-chain multisignature arrangements (including, as applicable, Squads or similar multisig frameworks) and/or programmatic controls that require multiple approvals for sensitive actions. The purpose of such controls is to (i) preserve Company control over Company Treasury Assets, (ii) prevent any single person or third-party service provider from exercising unilateral control, and (iii) mechanically constrain delegated operational roles (including market makers and other operators) to permitted actions without granting custody or discretionary transfer authority.

Protocol IP / operations separation. The Company's ownership or licensing of Protocol IP does not, by itself, mean the Company operates any minting, trading, or settlement services. The Treasury Subcommittee must exercise its authority so that independent third-party service providers act as independent contractors and remain responsible for their own operations and compliance programs; Company approvals are limited to treasury constraints (including permitted assets, caps, allowlists, and revocation) and do not constitute operation of such services by the Company.

The Company Treasury Subcommittee is not authorized to:

1. act outside policies or limits adopted by Resolution;
2. expand its own authority;
3. bind the Company to obligations not reasonably incidental to ordinary course treasury management as described above, or outside limits adopted by Resolution; or
4. engage in self-dealing or transact for personal benefit.

4.5 Audit Subcommittee

The Company may establish an Audit Subcommittee by Resolution to:

1. review the activities of persons exercising authority under the Company Agreement;
2. engage independent auditors or reviewers;
3. receive and review confidential information under appropriate controls; and

4. report findings to Members.

An Audit Subcommittee operates under confidentiality obligations established by the Resolution appointing it.

No Subcommittee may audit or review its own activities. The Audit Subcommittee may review other Subcommittees, and other Subcommittees or independent reviewers appointed by Resolution may review the Audit Subcommittee.

4.6 Other Subcommittees

The Company may establish other Subcommittees by Resolution for functions consistent with the Company's purpose, including:

1. grants and ecosystem programs supporting Protocol IP adoption;
2. research and development of Protocol IP;
3. stewardship of Protocol IP; and
4. other functions advancing the Company's interests in Protocol IP.

4.7 Standard of Conduct

Subcommittee Members shall exercise authority in good faith within the scope of their appointment.

Subcommittee Members are not liable for losses arising from good faith actions within scope, except in cases of Fraud or Willful Misconduct.

4.8 Confidentiality

Subcommittee composition and operational details are Confidential Information, except to the extent disclosure is required by mandatory law.

Article V — Oversight and Transparency

5.1 Record Retention

The Company shall retain governance, licensing, and registry records for at least five (5) years in accordance with mandatory law.

5.2 Independent Review

The Company may engage independent auditors or reviewers by Resolution to:

1. audit Protocol IP, including smart contracts and related code;
2. verify that treasury activities and controls are conducted in accordance with policies adopted by Resolution and for the benefit of the Company;
3. verify compliance with the Company Agreement; and
4. report findings to Members or to a designated Subcommittee.

5.3 Confidential Review

Where a matter requires review but public disclosure would compromise security or confidentiality, the Company may by Resolution appoint a confidential review Subcommittee or engage an independent reviewer under confidentiality obligations.

A confidential review Subcommittee may receive and review Confidential Information and Security-Sensitive Information. Findings may be reported in summary form that does not disclose Confidential Information or Security-Sensitive Information.

5.4 Review Does Not Waive Confidentiality

Nothing in this Article supersedes Article IX of the Operating Agreement.

Article VI — Standards of Conduct

6.1 Good Faith

Persons exercising authority under the Company Agreement shall act in good faith and in accordance with the covenant of good faith and fair dealing established in the Operating Agreement.

6.2 Scope of Authority

Persons exercising authority shall act only within the scope of their authority as established by the Operating Agreement, this Charter, or Resolution.

Actions outside the scope of authority do not bind the Company.

6.3 No Self-Dealing; Recusal

Persons exercising authority shall not engage in self-dealing or transact for personal benefit.

Where a person exercising authority has a conflict of interest or would be subject to legal constraint in relation to a matter, that person shall recuse themselves from participation in that matter.

6.4 Safe Harbor

Persons exercising authority are not liable for losses arising from good faith actions within the scope of their authority, except in cases of Fraud or Willful Misconduct.

6.5 Mandatory Law

No person is required to take any action that would cause that person to breach mandatory law. A good faith refusal to act on this basis is not a breach of the Company Agreement.

Article VII — Force Majeure and Limitations

7.1 Force Majeure

The Company and persons exercising authority are not liable for any failure to perform or delay in performance caused by events beyond reasonable control, including:

1. natural disasters;
2. power, telecommunications, or internet outages;
3. outages, congestion, or defects affecting underlying blockchain networks or infrastructure;
4. failure, insolvency, or misconduct of third-party service providers not under direct control;
5. actions by state actors, including sanctions, asset freezes, or compulsory orders; and
6. compromise or failure of cryptographic primitives or security assumptions.

7.2 Mitigation

Persons exercising authority shall use commercially reasonable efforts to mitigate and respond to force majeure events, but are not in breach merely because such events occur.

7.3 Protective Suspension

Where a person exercising authority reasonably believes a force majeure event has occurred and that proceeding would endanger Company Property, that person may suspend or delay action while notifying the Company, without this constituting a breach.

7.4 No Audit-Based Warranty

The fact that the Company has commissioned or published security audits or reviews of Protocol IP does not create any warranty or duty beyond those expressly set out in the Company Agreement.

Article VIII — Standard Operating Procedures

8.1 SOP Registry

The Company may maintain standard operating procedures and similar operational artefacts in the SOP Registry to support safe and efficient treasury and governance operations.

8.2 Interim Adoption

SOPs may be adopted or amended on an interim basis by the Head Steward or Subcommittees within their existing authority. Interim adoption does not amend this Charter, the Operating Agreement, or any on-chain constraints, and must not be used to expand authority.

8.3 Periodic Ratification

The Company should periodically ratify interim SOP changes through an Operational Pack proposal. Each Operational Pack should include a scope statement, change log, content identifiers for each SOP, effective date, and review expectation.

8.4 Hierarchy

SOPs are Tertiary Instruments. In the event of conflict with Primary or Secondary Instruments, the higher-precedence instrument prevails.

Article IX — Performance Vehicle

9.1 Acknowledgment

The Company acknowledges that a portion of Membership Interests are subject to on-chain lockup (the **"Performance Vehicle"**). The Performance Vehicle is visible on-chain.

9.2 No Individual Ownership or Control

The Performance Vehicle is not owned or controlled by any individual.

9.3 Not Company Property

The Performance Vehicle is not Company Property and is not part of Company Treasury Accounts. The Company does not control the on-chain programs implementing the Performance Vehicle.

9.4 Protection

The protections established in Section 10.3 of the Operating Agreement apply to the Performance Vehicle. Any Resolution that would:

1. exclude Membership Interests subject to lockup from fully-diluted treatment;
2. selectively dilute or discriminate against such Membership Interests;
3. seize, redirect, claw back, encumber, or extinguish the Performance Vehicle;
4. assert ownership or control over the Performance Vehicle; or
5. direct any person to take action against the Performance Vehicle;

is beyond the scope of the Company's authority and is void.

Article X — Natural Person Protections

10.1 No Personal Liability for Development

No natural person who has contributed to the design, development, or deployment of Protocol IP shall have any personal liability for any debt, obligation, loss, or other liability of the Company solely by virtue of:

1. authoring or committing code;
2. proposing or drafting governance proposals, memoranda, or documentation; or
3. acting as a developer or technical advisor;

unless such person has expressly assumed such liability in a separate written agreement signed in their personal capacity.

10.2 No Personal Liability for Historical Coordination

No natural person shall have any personal liability for Protocol losses, bugs, or failures solely by virtue of:

1. coordinating or overseeing development;
2. selecting or instructing third-party developers or auditors; or
3. approving or signing deployment transactions;

except in cases of Fraud or Willful Misconduct established by final judgment.

10.3 Fraud and Willful Misconduct

The protections in this Article do not apply to Fraud or Willful Misconduct.

Article XI — Amendment and Hierarchy

11.1 Company Agreement

This Charter is part of the Company Agreement. The Company Agreement comprises:

- **Primary Instruments:** the Operating Agreement, this Founding Charter, and the IP License Framework;
- **Secondary Instruments:** the Smart Contract Registry, Website Registry, Intellectual Property Registry, IP License & Assignment Register, and the Counterparty Agreements Register; and
- **Tertiary Instruments:** the SOP: Order of Business for Operational Packs, and the SOP Registry.

Proposal Memoranda serve as filing wrappers for amendments and other governance actions; their explanatory content is not normative but is subject to the hierarchy below to the extent of any conflict.

11.2 Hierarchy

In the event of conflict between instruments of the Company Agreement, the order of precedence is:

1. mandatory law;
2. Primary Instruments (in order: Operating Agreement, Founding Charter, IP License Framework);
3. Secondary Instruments; and
4. Tertiary Instruments; and
5. Proposal Memoranda.

11.3 Amendment

This Charter may be amended by Resolution in accordance with Section 6.5 of the Operating Agreement.

11.4 Interpretation

This Charter must be interpreted as a whole with the other instruments of the Company Agreement.

11.5 Protocol IP

The Company Agreement and all instruments incorporated by reference constitute Protocol IP. Unauthorized use, reproduction, or adaptation is an infringement of the Company's intellectual property rights and may be enforced by the Company.

Article XII — Adoption

12.1 Adoption

This Charter is adopted by the Organizer as part of the Company Agreement and takes effect on the Effective Date.

12.2 Effective Date

The Effective Date is the date on which the Company's Certificate of Formation is filed and accepted by the Registrar.

12.3 No Prior Agreement

This Charter supersedes any prior understanding, agreement, or representation relating to its subject matter.

IP License Framework of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This Framework takes effect on the Effective Date of the Company's Certificate of Formation.

PRIMARY INSTRUMENT. This IP License Framework is a binding primary instrument of the Company Agreement and governs the licensing of Protocol IP.

This IP License Framework is intended to comply with the Decentralized Autonomous Organizations Act of 2022 (as amended) (the "DAO Act"), the Limited Liability Company Act, 1996 (as amended) (to the extent not superseded by the DAO Act), and the Decentralized Autonomous Organization Regulations 2024 (the "DAO Regulations").

Article I — Purpose and Scope

1.1 Purpose

This Framework establishes the terms on which the Company may license Protocol IP to third parties and receive contributions to Protocol IP.

1.2 Intellectual Property Firewall

1. **"Protocol"** in this Framework has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.
2. Protocol IP is licensed under terms that require licensees to comply with applicable law and assume responsibility for their own deployments and operations. The Company does not operate, control, administer, or maintain any deployment of Protocol IP and shall not be deemed to do so. Licensee conduct is independent and is not attributable to the Company.
3. Adoption of this Framework, any license, or any Resolution does not obligate the Company to operate, provide, maintain, or support any deployment or service. No such obligation should be inferred from treasury directions or governance documentation.

1.3 Scope

This Framework:

1. establishes how the Company grants licenses to Protocol IP;
2. establishes the terms applicable to all licenses;
3. establishes what licensees must and must not do;
4. establishes how the Company receives contributions to Protocol IP; and
5. establishes what the Company does not do.

This Framework is part of the Company Agreement and must be interpreted as a whole with the other instruments of the Company Agreement.

1.4 IP-Only; Separate Agreements

This Framework governs the licensing of Protocol IP and the receipt of contributions to Protocol IP only. Any master agreement, statement of work, services arrangement, commercial contract, or other

agreement involving a Licensee (including any arrangement with additional parties) is separate and does not modify, supplement, or expand any License or the Company's role, except to the extent a signed writing expressly states otherwise and is adopted in the manner required by the Company Agreement and recorded in the SOP Registry.

Article II — Definitions

Terms defined in the Operating Agreement have the same meaning in this Framework unless otherwise specified.

2.1 License

A **"License"** is a grant of permission to use Protocol IP on terms approved by Resolution, or adopted pursuant to authority delegated under the Founding Charter to the Head Steward or Subcommittee established under it acting within its mandate, and (where required) subject to ratification in accordance with the Founding Charter. Each License shall be recorded in the IP License & Assignment Register and in the SOP Registry.

2.2 Licensee

A **"Licensee"** is any person to whom the Company has granted a License.

2.3 Implementation

An **"Implementation"** is any deployment or instantiation that incorporates or is derived from Protocol IP.

The Company does not deploy, operate, maintain, control, or endorse any Implementation. The Company makes no representation regarding any Implementation's fitness, safety, security, legality, or compliance with any law.

Any person who deploys or operates an Implementation does so entirely at their own risk and on their own responsibility. The Company has no liability for any Implementation or for any act, omission, loss, or damage arising from any Implementation.

2.4 Licensee Declaration

A **"Licensee Declaration"** is a statement made by a Licensee in connection with acceptance of a License, setting out the Licensee's self-declared parameters for its use of Protocol IP, including without limitation territorial scope, excluded jurisdictions, restricted activities, and intended use case.

Article III — Grant of License

3.1 License Grant

The Company may grant Licenses to Protocol IP by Resolution, or pursuant to authority delegated under the Founding Charter to the Head Steward or any Subcommittee established under it acting within its mandate, and (where required) subject to ratification in accordance with the Founding Charter. Each License shall be recorded in the IP License & Assignment Register and in the SOP Registry.

3.2 Terms

Each License shall specify:

1. the scope of permitted use;
2. any territorial or other restrictions;
3. the term of the License;
4. any fees payable; and
5. any other conditions.

3.3 Licensee Declaration Requirement

1. Each License shall include a **Licensee Declaration** section in which the Licensee sets out, in its own words and at its sole discretion, the parameters of its intended use of Protocol IP.
2. The Company does not dictate, direct, approve, or supervise the content of any Licensee Declaration. The Licensee Declaration reflects the Licensee's own independent determination of its compliance posture, risk appetite, and business strategy.
3. The Company grants broad permission to use Protocol IP for any lawful purpose. Any restriction, limitation, or exclusion stated in a Licensee Declaration is the Licensee's own self-imposed constraint. Such constraints are not imposed by the Company and do not reflect any direction or control by the Company.
4. Licensee Declarations may include, without limitation:
    - territorial scope (e.g., intended markets, excluded jurisdictions);
    - activity scope (e.g., production, development, testing);
    - regulatory posture (e.g., applicable regimes, excluded categories); and
    - use case (e.g., intended application of Protocol IP).

5. The Company makes no representation or warranty regarding the adequacy, accuracy, or legal effect of any Licensee Declaration. Each Licensee is solely responsible for determining what restrictions, if any, are appropriate for its circumstances.

3.4 Non-Exclusive

Unless a Resolution expressly provides otherwise, all Licenses are non-exclusive. The Company remains free to grant Licenses to other persons and to use, develop, and deal with Protocol IP.

3.5 Revocable

All Licenses are revocable. The Company may revoke, narrow, suspend, or reassign any License only where either (a) the Company has adopted a Resolution doing so (a "Revocation Resolution") or (b) such action is taken pursuant to authority delegated under the Founding Charter to the Head Steward or any Subcommittee established under it acting within its mandate, and (where required) is subject to ratification in accordance with the Founding Charter. Any such action shall be recorded in the SOP Registry.

The Company may revoke, narrow, suspend, or reassign a License only where it is determined in good faith that one or more of the following applies:

1. the Licensee breaches the terms of the License;
2. the Licensee breaches mandatory law;
3. continued licensing would create disproportionate risk to the Company, meaning a material and non-trivial risk of one or more of the following (as reasonably assessed in good faith):
    a. misuse, misappropriation, or unauthorized attribution of Licensed IP;
    b. misrepresentation that the Licensee or any Implementation is operated, endorsed, or controlled by the Company;
    c. sanctions, AML/CTF, fraud, or other illegality exposure reasonably attributable to the continued existence of the permission grant itself (and not to ordinary independent operations of the Licensee);
    d. a material security incident affecting the integrity, attribution, or provenance of Licensed IP (including compromised signing, registry integrity, or impersonation); or
    e. material regulatory exposure reasonably attributable to continued licensing being inconsistent with the Company's public disclosures, compliance posture, or documented governance constraints;
4. the Resolution granting the License so provides.

For avoidance of doubt, (i) the Company has no duty to investigate Licensee operations or to seek Licensee internal records in order to form any such determination; (ii) the Company may rely on the

Licensee Declaration, publicly available information, and/or credible third-party notices; and (iii) revocation, narrowing, or suspension is a limitation of permission only and does not create any right of control, supervision, or management over the Licensee.

3.6 No Transfer

A Licensee may not assign, transfer, or sublicense any License without prior approval by Resolution.

3.7 Recording and Confidential Particulars

Licenses, Licensee Declarations, and licensee particulars are recorded in the SOP Registry. For record-keeping, the IP License & Assignment Register is maintained as a canonical document within the SOP Registry repository, and the Public Record for each License may reference the applicable register entry (including by identifier, path, or hash). Each License entry is split into (a) a "Public Record" and (b) "Confidential Particulars". The Public Record contains non-confidential metadata and a cryptographic hash commitment (e.g., SHA-256) to the then-current "License Package" (being the License, Licensee Declaration, and any referenced schedules). Confidential Particulars are maintained off-chain and, to the extent stored in the SOP Registry, are maintained only in hashed and/or encrypted form and must be convertible to legible written form within a reasonable time where required by applicable law.

Confidential Particulars are limited to what is necessary to evidence a valid arm's-length license grant and its economics, such as:

1. legal name of the Licensee entity;
2. jurisdiction of formation and existence/standing status;
3. effective date, scope label, and any conditions precedent;
4. fee model (including royalty schedule references) and payment address(es);
5. authorised signatory evidence for acceptance of the Licensee Declaration; and
6. a notice contact for License-related communications.

Confidential Particulars do not include, and the Company does not require or request, Licensee operational or implementation information (including customer lists, vendor contracts, bank statements, internal ledgers, deployment infrastructure, source code, trading/treasury strategy, or privileged communications), except to the extent such material is strictly required to satisfy a valid legal demand addressed to the Company.

Member access. Except where disclosure is required by applicable law, access to Confidential Particulars (if any are maintained in unhashed form) may be granted to Members only pursuant to a Resolution and subject to any confidentiality undertakings specified in that Resolution. Otherwise, Members may verify integrity via the Public Record hash commitments.

A License may reference an entity to be formed. The License becomes effective only when the referenced entity exists and any conditions specified in the granting Resolution are satisfied.

3.8 License is Not a Right

A License is permission only. A License does not confer any right, entitlement, or claim against the Company. A Licensee has no vested interest in the continuation of any License.

3.9 No Control Through Licensing

The grant of a License, the recording of a Licensee Declaration, or the existence of multiple Licensees with different Declarations does not constitute:

1. direction, control, or supervision of any Licensee by the Company;
2. coordination or orchestration of Licensee activities by the Company;
3. approval or endorsement of any Licensee's business, compliance posture, or Licensee Declaration; or
4. a common enterprise, joint venture, or unified operation among the Company and its Licensees.

Each Licensee operates independently. The fact that one Licensee restricts its activities to certain jurisdictions or purposes while another Licensee operates differently reflects the independent decisions of independent entities, not direction by the Company.

Article IV — License is Permission Only

4.1 No Relationship Created

A License is permission to use Protocol IP. A License does not create any:

1. agency, partnership, joint venture, or employment relationship;
2. fiduciary duty or duty of care;
3. common enterprise or profit-sharing arrangement;
4. custodial, trust, or similar arrangement; or
5. right of the Company to control, supervise, or manage the Licensee's business.

4.2 Licensee Independence

Each Licensee:

1. acts as an independent principal in its own capacity;
2. is solely responsible for its own deployments and operations;
3. is solely responsible for compliance with all laws applicable to it;
4. is solely responsible for its relationships with its own customers and counterparties;
5. is solely responsible for determining and implementing its own Licensee Declaration; and
6. may not bind, represent, or speak on behalf of the Company.

4.3 No Reverse Attribution

Licensee conduct, operations, deployments, products, services, customers, Licensee Declarations, and liabilities are not attributable to the Company. The Company does not operate, provide, maintain, support, or control any Licensee's business or any Implementation.

4.4 No Reverse Entitlement

A License does not grant the Company or Members any right to the Licensee's business, assets, revenues, customers, or intellectual property beyond the terms of the License.

4.5 No Agency

No Licensee is an agent of the Company. No Licensee has actual, apparent, or ostensible authority to bind the Company or to act on the Company's behalf.

The Company is not an agent of any Licensee. The Company has no authority to bind any Licensee or to act on any Licensee's behalf.

Any representation by a Licensee that it acts as agent of the Company, or any representation by any person that the Company acts as agent of a Licensee, is unauthorized and void.

4.6 Licensees and Members

This Framework governs commercial licensing relationships with Licensees. It does not govern the relationship between the Company and its Members, which is governed by the Operating Agreement and the Founding Charter.

A Licensee that is also a Member has the rights and obligations of a Member under the Operating Agreement and the Founding Charter, and the rights and obligations of a Licensee under this Framework. The relationship of Licensee does not confer any additional Membership rights, and the relationship of Member does not confer any additional licensing rights.

4.7 No Transitive Rights

A License does not confer on any Licensee any right against any Member, and does not confer on any Member any right against any Licensee.

No Licensee has any right against any other Licensee by reason of their respective Licenses.

No Licensee may assert any claim through the Company against any Member or against any other Licensee.

The Company is not an intermediary, conduit, or representative between Licensees, between Licensees and Members, or between Members and any Licensee's customers or counterparties.

4.8 Licensee's Independent Activities

A License relates only to Protocol IP. The Company does not restrict, supervise, or have any interest in a Licensee's activities unrelated to Protocol IP.

Each Licensee is expected to conduct its own independent business, maintain its own relationships, and operate its own infrastructure. A Licensee that has no substantial business or operations independent of Protocol IP may be treated as presenting disproportionate risk under Section 3.5.

4.9 No Inference from Licensee Declarations

The content of any Licensee Declaration is determined solely by the Licensee. No inference of Company direction, control, approval, or supervision may be drawn from:

1. the existence of Licensee Declarations;
2. similarities or differences between Licensee Declarations of different Licensees;
3. the specificity or generality of any Licensee Declaration;
4. the jurisdictions included or excluded in any Licensee Declaration; or
5. changes to any Licensee Declaration over time.

Article V — Licensee Obligations

5.1 Compliance

Each Licensee shall:

1. comply with all laws applicable to its use of Protocol IP;
2. obtain and maintain any licenses, registrations, or approvals required for its activities;
3. ensure that its marketing, disclosures, and communications do not misrepresent the Company's role or create any impression that the Company operates, provides, or controls any Implementation;
4. include appropriate notices identifying the Licensee (not the Company) as the counterparty in any user-facing terms or agreements; and
5. provide a Licensee Declaration that accurately reflects the Licensee's intended use of Protocol IP.

5.2 No Binding the Company

A Licensee shall not:

1. bind, represent, or speak on behalf of the Company;
2. state or imply that the Company operates, provides, or controls any Implementation;
3. state or imply that any agreement with the Licensee is an agreement with the Company;
4. state or imply that the Company directed, approved, or supervised the content of the Licensee's Licensee Declaration; or
5. use Protocol IP in any manner that would cause the Company to be characterized as operating a regulated business.

5.3 Intellectual Property Notices

Where a Licensee publishes or distributes materials incorporating Protocol IP, the Licensee shall include appropriate copyright notices and attributions.

5.4 Licensee Declaration Accuracy

Each Licensee represents that its Licensee Declaration accurately reflects the Licensee's intended scope of use at the time of making the Declaration. A Licensee shall update its Licensee Declaration if there is a material change in its intended scope of use. The Company has no obligation to verify the accuracy of any Licensee Declaration.

Article VI — Company's Role and Limitations

6.1 Company's Role

The Company's role and limitations are established in and controlled by the Operating Agreement. This Framework does not expand the Company's role beyond that established in the Operating Agreement.

6.2 No Obligation to License

Nothing in this Framework obliges the Company to grant any License or to continue any License.

6.3 No Direction of Licensee Business

The Company does not direct, supervise, approve, or control:

1. any Licensee's business decisions, operations, or compliance posture;
2. the content, scope, or adequacy of any Licensee Declaration;
3. the jurisdictions in which any Licensee operates or does not operate;
4. the customers or counterparties any Licensee serves or does not serve; or
5. the manner in which any Licensee implements or deploys Protocol IP.

Article VII — Economic Terms

7.1 License Fees

The Company may charge license fees as specified in each License and recorded in the IP License & Assignment Register.

7.2 Commercial Consideration

License fees are commercial consideration for the grant of permission to use Protocol IP. License fees are not:

1. profit-sharing or revenue participation;
2. partnership distributions;
3. payment for services; or
4. consideration creating any relationship beyond the License.

7.3 No Claim on Licensee Revenues

Except for license fees expressly specified, the Company has no claim on any Licensee's revenues, profits, or assets.

7.4 Payment

License fees are payable to Company Treasury Accounts as specified in the License.

7.5 Payments to Licensees

The Company may make payments to a Licensee by Resolution for:

1. acquisition of intellectual property;
2. contributions to Protocol IP;
3. grants supporting development of Protocol IP; or
4. other purposes approved by Resolution and consistent with the Company's role.

No payment from Company Treasury Accounts may be used, directly or indirectly, to fund the operation of any Implementation. A Licensee receiving payment shall not apply those funds to operating any Implementation.

Article VIII — Contributions and Assignments

8.1 Contributions to Protocol IP

The Company may receive contributions to Protocol IP, including code, documentation, specifications, and other intellectual property, by assignment or license.

8.2 Assignment Terms

Contributions may be assigned to the Company on terms approved by Resolution and recorded in the IP License & Assignment Register.

8.3 Contributor License

Where assignment is not practicable, the Company may accept a perpetual, irrevocable, worldwide, royalty-free license with rights to sublicense, modify, and incorporate the contribution into Protocol IP.

8.4 Contributors Are Not Licensees

A person who contributes to Protocol IP is not, by that fact alone, a Licensee. Contribution does not confer any right to use Protocol IP beyond the contribution itself.

8.5 Contributors Are Not Members

A person who contributes to Protocol IP is not, by that fact alone, a Member. Contribution does not confer Membership or any Membership Interest.

8.6 No Reverse Obligation

The Company has no obligation to accept, use, maintain, or incorporate any contribution. Acceptance of a contribution does not create any ongoing relationship or obligation.

8.7 Background IP

Contributors retain ownership of background intellectual property that is not specific to Protocol IP. Where background IP is incorporated into a contribution, the contributor grants the Company a license sufficient to use, modify, and sublicense Protocol IP without restriction.

8.8 Specific License Terms

Specific Protocol IP may contain license terms that further restrict or specify conditions of use. Such terms are Tertiary Instruments and are subject to the order of precedence established in the Company Agreement.

Further restrictions, defaults, or standard terms for licensing may be established in the SOP Registry.

Article IX — Confidentiality

9.1 No Access to Licensee Information

The Company has no right to access or obtain any Licensee's books, records, internal communications, customer data, trade secrets, or privileged information, except to the extent expressly specified in a License.

9.2 No Supervision

The Company does not supervise, audit, or monitor Licensee operations, except to the extent expressly specified in a License.

9.3 Review Does Not Waive Confidentiality

Any review, audit, or disclosure under a License does not waive confidentiality as to any other person and does not create any right of access for Members.

9.4 Legal Requests

If the Company receives a legal request concerning a Licensee, the Company shall, to the extent permitted by law, forward the request to the Licensee. The Company is not required to possess or produce Licensee records.

9.5 No Imputation from Contributor Disclosures

Any disclosure of Confidential Information by or to a Contributor in connection with a contribution does not waive confidentiality or privilege as to any other person, does not constitute notice to or knowledge of any Licensee or Member, does not create any Licensee or Member right of access, and does not create control, supervisory authority, constructive knowledge, or attribution.

Article X — Indemnity and Limitation of Liability

10.1 Licensee Indemnity

Each Licensee shall indemnify the Company for losses arising from:

1. the Licensee's breach of the License or this Framework;
2. the Licensee's failure to comply with applicable law;
3. the Licensee's operations, deployments, products, services, or customer relationships;
4. any claim that the Company operates, provides, or controls the Licensee's business; and
5. any claim that the Company directed, approved, or supervised the content of the Licensee's Licensee Declaration.

10.2 Limitation of Liability

The Company is not liable for any Licensee's operations, deployments, products, services, or customer relationships. The Company makes no representation or warranty regarding Protocol IP except as expressly set out in the Company Agreement.

10.3 No Audit-Based Warranty

The fact that the Company has commissioned or published security audits or reviews of Protocol IP does not create any warranty or duty beyond those expressly set out in the Company Agreement.

Article XI — Amendment and Hierarchy

11.1 Company Agreement

This Framework is part of the Company Agreement. The Company Agreement comprises:

- **Primary Instruments:** the Operating Agreement, the Founding Charter, and this IP License Framework;
- **Secondary Instruments:** the Smart Contract Registry, Website Registry, Intellectual Property Registry, IP License & Assignment Register, and the Counterparty Agreements Register; and
- **Tertiary Instruments:** the SOP: Order of Business for Operational Packs, and the SOP Registry.

11.2 Hierarchy

In the event of conflict between instruments of the Company Agreement, the order of precedence is:

1. mandatory law;
2. Primary Instruments (in order: Operating Agreement, Founding Charter, IP License Framework);
3. Secondary Instruments; and
4. Tertiary Instruments; and
5. Proposal Memoranda.

11.3 Amendment

This Framework may be amended only by Resolution in accordance with Operating Agreement §6.5(1).

Any Resolution that purports to replace this Framework in its entirety must also comply with Operating Agreement §6.5(2).

11.4 Interpretation

This Framework must be interpreted as a whole with the other instruments of the Company Agreement.

11.5 Protocol IP

The Company Agreement and all instruments incorporated by reference constitute Protocol IP, including this Framework, any license templates or standard terms established in the SOP Registry, and any derivative formats or structures. Unauthorized use, reproduction, or adaptation is an infringement of the Company's intellectual property rights and may be enforced by the Company.

Article XII — Miscellaneous

12.1 Governing Law

This Framework is governed by the laws of the Republic of the Marshall Islands.

12.2 No Partnership

Nothing in this Framework creates any partnership, joint venture, agency, or fiduciary relationship between the Company and any Licensee.

12.3 No Third-Party Beneficiaries

Only the Company and Licensees have rights under this Framework. No other person has any third-party beneficiary rights.

12.4 Entire Agreement

This Framework, together with the other instruments of the Company Agreement, constitutes the entire agreement regarding the licensing of Protocol IP.

12.5 No Oral Modification

Amendments require Resolution. No oral modification or modification by course of dealing is effective.

12.6 No Implied Covenants; No Estoppel

Section 11.9 of the Operating Agreement applies to this Framework.

12.7 Equitable Relief; Remedies

The Company may seek injunctive relief, specific performance, or other equitable relief as may be available under applicable law for a breach of this Framework or any License, in addition to any other rights or remedies (including revocation under Section 3.5).

For the avoidance of doubt, this Section does not create any implied covenant, estoppel, waiver, or expansion of rights by conduct or course of dealing, and Section 12.6 controls.

Nothing in this Section creates any duty for the Company to monitor, police, investigate, supervise, or control any Licensee or any Implementation.

Article XIII — Adoption

13.1 Adoption

This Framework is adopted by the Organizer as part of the Company Agreement and takes effect on the Effective Date.

13.2 Effective Date

The Effective Date is the date on which the Company's Certificate of Formation is filed and accepted by the Registrar.

13.3 No Prior Agreement

This Framework supersedes any prior understanding, agreement, or representation relating to its subject matter.

Smart Contract Registry of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This Registry takes effect on the Effective Date of the Company's Certificate of Formation.

SECONDARY INSTRUMENT. This Smart Contract Registry is a secondary instrument of the Company Agreement.

Not a Registrar Registry. This Smart Contract Registry is an internal governance instrument of the Company. It is not the registry maintained by the Registrar of Corporations, the Marshall Islands DAO LLC Registry, or the IRI Registry. This Registry is maintained by the Company for purposes of DAO Act §106(2) and does not replace or purport to be any Registrar-maintained registry.

This Registry constitutes the Company's smart contract registry for purposes of §106(2) of the Decentralized Autonomous Organizations Act 2022 (as amended).

Updates to this Register take effect when approved by Resolution, or (where permitted) provisionally upon adoption pursuant to authority delegated under the Founding Charter (acting within its mandate), provided the update is recorded in the SOP Registry and submitted for ratification in accordance with the Founding Charter.

Intellectual Property Firewall

"Protocol" in this Registry has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.

Program addresses listed in this Registry are identifiers only. Listing a program address does not mean the Company operates, controls, or is responsible for that program.

Structure

This Registry contains two parts:

1. **Part I - Smart Contract Registry (DAO Act §106(2)).** Programs used by the Governance System.
2. **Part II - Company Treasury Accounts Register.** Addresses designated as holding Company Property.

Part I — Smart Contract Registry (DAO Act §106(2))

Registry ID	Program Name	Program Address (base58)	Network	Purpose	Notes
REG-001	Governance Multisig (Squads v4)	3CGEbGBg6EL9ZBMzuZPLymUzZjyDGUuPatEcS4F7s8Qe	Solana mainnet-beta	Execution of Resolutions	Third-party program. Company does not operate.
REG-002	Futarchic Mechanism (MetaDAO)	FUTARELBfJfQ8RDGhg1wdhddq1odMAJUePHFuBYfUxKq	Solana mainnet-beta	Governance signaling	Third-party program administered by MetaDAO. Company does not operate.
REG-003	Futarchic Mechanism (MetaDAO)	VLTX1ishMBbcX3rdBWGssxawAo1Q2X2qxYFYqiGodVg	Solana mainnet-beta	Governance signaling	Third-party program administered by MetaDAO. Company does not operate.
REG-004	SOLO Token Mint (SPL)	SoLo9oxzLDpcq1dpqAgMwgce5WqkRDtNXK7EPnbmeta	Solana mainnet-beta	Membership Interest token	SPL mint. No freeze authority.

Part II — Company Treasury Accounts Register

This register lists addresses designated by Resolution as holding Company Property.

Exclusions. This register excludes any accounts holding third-party property, user deposits, or other assets not beneficially owned by the Company.

Treasury ID	Account Purpose	Address (base58)	Network	Control	Notes
TA-001	Governance Treasury Multisig	98SPcyUZ2rqM2dgjCqqSXS4gJrNTLSNUAAVCF38xYj9u	Solana mainnet-beta	Governance Multisig	Primary treasury.
TA-002	Futarchy AMM Position	DzYtzoNvPbyFCzwZA6cSm9eDEEmxEB9f8AGkJXUXgnSA	Solana mainnet-beta	Subject to Futarchy AMM Program rules	Third-party program administered by MetaDAO.

Amendment

This Registry is a Secondary Instrument and may be amended by Resolution in accordance with §6.5(3) of the Operating Agreement. Any material change to the structure, format, or governing rules of this Registry requires Resolution.

Registry Maintenance and Filing (DAO Act §106(2))

This Registry must be maintained current for purposes of annual filings required by the DAO Act. The Head Steward may update this Registry for filing purposes only to reflect: (1) technical corrections; (2) changes previously approved by Resolution; and (3) changes required to maintain accuracy of filed information, in each case in accordance with §6.6 of the Operating Agreement.

The Head Steward may not: (1) materially alter the structure or format of this Registry; (2) add or remove entries except as approved by Resolution or required for accuracy; (3) misrepresent the contents of this Registry; or (4) use filing authority to expand the scope or authority of any instrument. Any material change to this Registry requires Resolution.

Record-Keeping Updates

Entries may be added, removed, corrected, or refreshed as record-keeping updates in accordance with §6.6 and §6.7 of the Operating Agreement, provided such updates do not materially alter the structure, format, or governing rules of this Registry and do not expand the scope, authority, or legal effect of any instrument.

Emergency record-keeping updates required to mitigate a security incident, exploit risk, or imminent harm to Company Treasury Accounts may be made and recorded as soon as reasonably practicable in accordance with §6.7(3), but only to the extent consistent with §6.6.

Any record-keeping update must be recorded in the SOP Registry and submitted for ratification as required by §6.7.

Record-keeping updates do not, by themselves, create authority to deploy, operate, upgrade, administer, maintain, or control any program or account, or to exercise custody over any assets.

Relationship to Registrar Filings

The Representative Agent is responsible for ensuring that smart contract information filed with the Registrar is consistent with this Registry.

Website Registry
of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This Registry takes effect on the Effective Date of the Company's Certificate of Formation.

SECONDARY INSTRUMENT. This Website Registry is a secondary instrument of the Company Agreement.

Not a Registrar Registry. This Website Registry is an internal governance instrument of the Company. It is not the registry maintained by the Registrar of Corporations, the Marshall Islands DAO LLC Registry, or the IRI Registry. This Registry is maintained by the Company for purposes of DAO Act §102(p) and does not replace or purport to be any Registrar-maintained registry.

This Registry designates the Company's official online venues for purposes of §102(p) of the Decentralized Autonomous Organizations Act 2022 (as amended).

Updates to this Register take effect when approved by Resolution, or (where permitted) provisionally upon adoption pursuant to authority delegated under the Founding Charter (acting within its mandate), provided the update is recorded in the SOP Registry and submitted for ratification in accordance with the Founding Charter.

Intellectual Property Firewall

"Protocol" in this Registry has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.

Listing a domain or URL in this Registry designates it as an official online venue of the Company only to the extent expressly stated in Part I. Any domain, URL, repository, communication channel, or other property not listed in Part I is not an official Company venue. Nothing in this Registry implies ownership, operation, control, administration, hosting, key custody, or compliance responsibility by the Company for any property.

Part I — Official Online Venues (DAO Act §102(p))

These are the Company's designated official online venues where Members convene for governance activities. Entries marked Pending are placeholders and are not designated official venues until activated by Resolution.

Registry ID	Venue Type	Domain / URL	Purpose	Status	Notes
WEB-001	Primary Website	TBD	Documentation, governance information, announcements	Pending	Primary public-facing venue.
WEB-002	Governance Forum	TBD	Proposal discussion, governance deliberation	Pending	Forum for governance discussions.
WEB-003	Proposal Repository	https://github.com/SolomonDAOrg/dao-proposals	Proposal texts, memoranda, governance logs	Active	Publication and coordination; canonical authority remains on-chain records.
WEB-004	SOP Registry	https://github.com/SolomonDAOrg/sop-registry	SOPs, operational packs, ratified governance instruments	Active	Current ratified versions; superseded versions retained for auditability.

Part II — Retired Venues

Venues previously designated as official that have been retired, migrated, or superseded. Retained for historical reference.

Registry ID	Former Domain / URL	Retired Date	Superseded By	Notes
(none)	--	--	--	No retired venues at initial adoption.

Amendment

This Registry is a Secondary Instrument and may be amended by Resolution in accordance with §6.5(3) of the Operating Agreement. Any material change to the structure, format, or governing rules of this Registry requires Resolution.

Registry Maintenance and Filing (DAO Act §102(p))

This Registry must be maintained current for purposes of annual filings required by the DAO Act. The Head Steward may update this Registry for filing purposes only to reflect: (1) technical corrections; (2) changes previously approved by Resolution; and (3) changes required to maintain accuracy of filed information, in each case in accordance with §6.6 of the Operating Agreement.

The Head Steward may not: (1) materially alter the structure or format of this Registry; (2) add or remove entries except as approved by Resolution or required for accuracy; (3) misrepresent the contents of this Registry; or (4) use filing authority to expand the scope or authority of any instrument. Any material change to this Registry requires Resolution.

Record-Keeping Updates

Entries may be added, removed, corrected, or refreshed as record-keeping updates in accordance with §6.6 and §6.7 of the Operating Agreement, provided such updates do not materially alter the structure, format, or governing rules of this Registry and do not expand the scope, authority, or legal effect of any instrument.

Emergency record-keeping updates required to mitigate a security incident, exploit risk, or imminent harm to Company Treasury Accounts may be made and recorded as soon as reasonably practicable in accordance with §6.7(3), but only to the extent consistent with §6.6.

Any record-keeping update must be recorded in the SOP Registry and submitted for ratification as required by §6.7.

Record-keeping updates do not, by themselves, create authority to operate any website, forum, repository, or communication channel, or to assume compliance responsibility for any such property.

Relationship to Registrar Filings

The Representative Agent is responsible for ensuring that official online venue information filed with the Registrar is consistent with this Registry.

Intellectual Property Registry of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This Registry takes effect on the Effective Date of the Company's Certificate of Formation.

SECONDARY INSTRUMENT. This Intellectual Property Registry is a secondary instrument of the Company Agreement.

Not a Registrar Registry. This Intellectual Property Registry is an internal governance instrument of the Company. It is not the registry maintained by the Registrar of Corporations, the Marshall Islands DAO LLC Registry, or the IRI Registry. This Registry is maintained by the Company and does not replace or purport to be any Registrar-maintained registry.

This Registry is the canonical list of Protocol IP and Marks owned or controlled by the Company.

Updates to this Register take effect when approved by Resolution, or (where permitted) provisionally upon adoption pursuant to authority delegated under the Founding Charter (acting within its mandate), provided the update is recorded in the SOP Registry and submitted for ratification in accordance with the Founding Charter.

Intellectual Property Firewall

"Protocol" in this Registry has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.

This Registry enumerates Protocol IP only. It does not enumerate or imply ownership of, custody over, or operational control over any deployments, operational stacks, infrastructure, third-party services, or third-party assets.

Licensing of Protocol IP

Protocol IP enumerated in this Registry may be licensed to third parties in accordance with the IP License Framework. Each license is recorded in the IP License & Assignment Register and includes a Licensee Declaration in which the Licensee sets out, in its own words and at its sole discretion, the parameters of its intended use.

The Company does not direct, supervise, approve, or control any Licensee's use of Protocol IP or the content of any Licensee Declaration. The enumeration of Protocol IP in this Registry does not imply any operational role by the Company.

Part I — Marks and Brand Assets

IP ID	Type	Name	Registration / Status	Notes
MARK-001	Word mark	SOLOMON	TBD	Primary brand mark.
MARK-002	Word mark	SOLO	TBD	Governance token mark.
MARK-003	Logo / device	SOLO Logo	TBD	Primary logo.

Part II — Repositories and Source Code

IP ID	Type	Repository / Artifact	Location	Notes
REPO-001	Monorepo	solomon-monorepo	https://github.com/SolomonDAOrg/solomon-monorepo	Primary codebase. Proprietary IP.
REPO-002	Monorepo	sophia-monorepo	https://github.com/SolomonDAOrg/sophia-monorepo	Primary codebase. Proprietary IP.
REPO-003	Record Schema	record-schema	https://github.com/SolomonDAOrg/record-schema	Record schema reference.
REPO-004	Record Schema Toolkit	record-schema-toolkit	https://github.com/SolomonDAOrg/record-schema-toolkit	Schema validation tooling.
REPO-005	Solana Programs	solomon-programs	https://github.com/SolomonDAOrg/solomon-programs	Rust source code for programs and interfaces.

Part III — Documentation and Governance Instruments

IP ID	Type	Title	Notes
DOC-001	Governance	Company Agreement	Founding legal and governance instruments.
DOC-002	Governance	SOP Registry	Standard operating procedures.
DOC-003	Governance	DAO Proposals Registry	Proposal texts, memoranda, governance logs.

Part IV — Third-Party IP (Informational)

Third-party open-source, trademarks, or licensed materials used by the Company are referenced in applicable repository LICENSE files and/or recorded in the IP License & Assignment Register.

Amendment

This Register is a Secondary Instrument and may be amended by Resolution in accordance with §6.5(3) of the Operating Agreement. Any material change to the structure, format, or governing rules of this Register requires Resolution.

Record-Keeping Updates

Entries may be added, removed, corrected, or refreshed as record-keeping updates under delegated authority in accordance with §6.7 of the Operating Agreement, provided such updates do not materially alter the structure, format, or governing rules of this Register. Any such update must be recorded in the SOP Registry and submitted for ratification as required by §6.7.

Record-keeping updates do not, by themselves, create authority to enter into an agreement, expand any delegated authority, or constitute approval of the underlying agreement beyond the authority under which it was entered.

IP License & Assignment Register of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This Register takes effect on the Effective Date of the Company's Certificate of Formation.

SECONDARY INSTRUMENT. This IP License & Assignment Register is a secondary instrument of the Company Agreement.

Not a Registrar Registry. This IP License & Assignment Register is an internal governance instrument of the Company. It is not the registry maintained by the Registrar of Corporations, the Marshall Islands DAO LLC Registry, or the IRI Registry. This Register is maintained by the Company and does not replace or purport to be any Registrar-maintained registry.

This Register is the canonical record of IP license grants and IP assignments relating to Protocol IP.

Updates to this Register take effect when approved by Resolution, or (where permitted) provisionally upon adoption pursuant to authority delegated under the Founding Charter (acting within its mandate), provided the update is recorded in the SOP Registry and submitted for ratification in accordance with the Founding Charter.

Intellectual Property Firewall

"Protocol" in this Register has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.

This Register concerns Protocol IP only. It does not license, approve, supervise, or regulate any Licensee's business.

Licensee Declaration Records

Licensee Declarations are self-declarations made by each Licensee in connection with acceptance of a License. The Company does not dictate, direct, approve, or supervise the content of any Licensee Declaration. Each Licensee determines its own Declaration at its sole discretion.

The recording of a Licensee Declaration in this Register:

1. does not constitute Company approval or endorsement of the Declaration's content;
2. does not constitute Company direction or control of the Licensee's business;
3. does not warrant the adequacy, accuracy, or legal effect of the Declaration; and
4. is for record-keeping purposes only.

Differences between Licensee Declarations of different Licensees reflect the independent decisions of independent entities, not direction by the Company.

Confidential Entries

Where a counterparty must remain confidential, the entry may be recorded by:

1. a confidential hash or content identifier; and/or
2. a placeholder with a reveal procedure if required by mandatory law.

Full particulars of confidential entries are maintained in the SOP Registry as Confidential Information.

Part I — Outbound Licenses (Company to Licensee)

License ID	Subject (IP IDs)	Counterparty	Scope	Territory	Term	Consideration	Licensee Declaration	Confidential	Notes
LA-001	TBD	TBD	TBD	TBD	TBD	TBD	See Schedule LA-001-DEC	TBD	Placeholder.

Part II — Inbound Licenses (Licensor to Company)

License ID	Subject	Counterparty	Scope	Territory	Term	Consideration	Confidential	Notes
LI-001	TBD	TBD	TBD	TBD	TBD	TBD	TBD	Placeholder.

Part III — Assignments (Assignor to Assignee)

Assignment ID	Subject	From	To	Effective Date	Confidential	Notes
AS-001	TBD	TBD	Company	TBD	TBD	Placeholder.

Part IV — Revocations and Terminations

Event ID	Related ID	Trigger	Action	Effective Date	Notes
RVK-001	TBD	TBD	TBD	TBD	Placeholder.

Part V — Licensee Declaration Schedules

Schedule Template

Each Licensee Declaration Schedule shall be in substantially the following form:

Schedule [LA-XXX]-DEC: Licensee Declaration

License ID: [LA-XXX]

Licensee: [Licensee Name and Jurisdiction]

Date: [Date of Declaration]

LICENSEE DECLARATION

The undersigned Licensee, having received a License to Protocol IP from SOLOMON DAO LLC, hereby declares the following regarding its intended use of Protocol IP. This Declaration is made by the Licensee in its sole discretion. The Company has not dictated, directed, approved, or supervised the content of this Declaration.

Intended Use:

[Licensee describes its intended use in its own words]

Territorial Scope / Exclusions:

[Licensee describes any jurisdictions in which it will or will not operate, or states "No territorial restrictions declared"]

Activity Restrictions:

[Licensee describes any activity restrictions it is self-imposing, or states "No activity restrictions declared"]

Regulatory Exclusions:

[Licensee describes any regulatory exclusions, such as sanctions compliance, or states "No regulatory exclusions declared"]

Additional Declarations:

[Licensee may include any other declarations it considers appropriate, or states "None"]

Licensee Acknowledgment:

The Licensee acknowledges that:

1. This Declaration reflects the Licensee's own independent determination of its compliance posture, risk appetite, and business strategy.
2. The Company has not directed, approved, or supervised the content of this Declaration.
3. The Company makes no representation or warranty regarding the adequacy, accuracy, or legal effect

of this Declaration.

4. The Licensee is solely responsible for determining what restrictions, if any, are appropriate for its circumstances.

Licensee Signature:

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[Authorized Representative]

[Title]

[Date]

Recorded Licensee Declaration Schedules

Schedule ID	License ID	Licensee	Date	Status
LA-001-DEC	LA-001	TBD	TBD	Placeholder

Amendment

This Register is a Secondary Instrument and may be amended by Resolution in accordance with §6.5(3) of the Operating Agreement. Any material change to the structure, format, or governing rules of this Register requires Resolution.

Record-Keeping Updates

Entries may be added, removed, corrected, or refreshed as record-keeping updates under delegated authority in accordance with §6.7 of the Operating Agreement, provided such updates do not materially alter the structure, format, or governing rules of this Register. Any such update must be recorded in the SOP Registry and submitted for ratification as required by §6.7.

Record-keeping updates do not, by themselves, create authority to enter into an agreement, expand any delegated authority, or constitute approval of the underlying agreement beyond the authority under which it was entered.

Counterparty Agreements Register of SOLOMON DAO LLC

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This Register takes effect on the Effective Date of the Company's Certificate of Formation.

SECONDARY INSTRUMENT. This Counterparty Agreements Register is a secondary instrument of the Company Agreement.

Not a Registrar Registry. This Register is an internal governance instrument of the Company. It is not the registry maintained by the Registrar of Corporations, the Marshall Islands DAO LLC Registry, or the IRI Registry. This Register is maintained by the Company for internal governance traceability and does not replace or purport to be any Registrar-maintained registry.

This Register is the canonical index of agreements the Company enters into with external parties (including amendments, statements of work, side letters, accession instruments, joinders, and terminations).

Updates to this Register take effect when approved by Resolution, or (where permitted) provisionally upon adoption pursuant to authority delegated under the Founding Charter (acting within its mandate), provided the update is recorded in the SOP Registry and submitted for ratification in accordance with the Founding Charter.

Intellectual Property Firewall

"Protocol" in this Register has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.

This Register records agreements as legal instruments and metadata only. Recording an agreement (including by identifier, path, hash commitment, or reference) does not, by itself, create or imply any operational role, compliance responsibility, agency, fiduciary duty, partnership, joint venture, custody, or control by the Company, and does not make any counterparty conduct attributable to the Company.

For avoidance of doubt, no agreement indexed in this Register is incorporated into the Company Agreement or any Protocol IP instrument by implication or course of dealing.

Separation; No Conflation

This Register is for record-keeping and governance traceability only.

Recording an agreement in this Register:

1. does not amend, supplement, or modify the IP License Framework, any license of Protocol IP, the Intellectual Property Registry, or the IP License & Assignment Register, and does not incorporate any such instrument by reference, except where the Company has expressly adopted such amendment in the manner required by the Company Agreement and recorded it in the SOP Registry;
2. does not create any agency, partnership, joint venture, fiduciary, employment, or representative relationship between the Company and any counterparty; and
3. does not confer any third-party beneficiary rights.

For avoidance of doubt, a counterparty may be both (a) a party to one or more agreements indexed here and (b) a licensee of Protocol IP, but those are separate arrangements and must not be characterized as a single integrated arrangement by implication or course of dealing.

Recording and Confidential Particulars

Agreements and related instruments may be recorded as (a) a "Public Record" and (b) "Confidential Particulars".

The Public Record contains non-confidential metadata and a cryptographic hash commitment (e.g., SHA-256) to the then-current "Agreement Package" (being the executed agreement and any referenced schedules, amendments, and side letters).

A hash commitment is for provenance and integrity only and does not, by itself, disclose, publish, or grant rights in the Agreement Package.

Confidential Particulars are maintained off-chain and, to the extent stored in the SOP Registry, are maintained only in hashed and/or encrypted form and must be convertible to legible written form within a reasonable time where required by applicable law.

Part I — Master Agreements and Core Contracts

Agreement ID	Title / Short Name	Counterparty	Type	Effective Date	Term / Status	Authority	Related Register References	Public Record Pointer	Public Record Hash	Confidential	Notes
AG-001	TBD	TBD	TBD	TBD	TBD	TBD	(optional) LA-XXX / AS-XXX / IP IDs	TBD	TBD	TBD	Placeholder.

- "Authority" should reference the approving Resolution or delegated authority/ratification reference.
- "Related Register References" may include pointers to relevant license IDs (LA/LI), assignment IDs (AS), or Protocol IP IDs where useful for traceability, without incorporation by reference unless expressly stated.

Part II — Statements of Work, Order Forms, and Schedules

SOW ID	Related Agreement ID	Counterparty	Scope Summary	Effective Date	Term / Status	Authority	Public Record Pointer	Public Record Hash	Confidential	Notes
SOW-001	AG-001	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	Placeholder.

Part III — Amendments, Side Letters, Joinders, and Accessions

Instrument ID	Related Agreement ID	Counterparty	Type	Effective Date	Authority	Public Record Pointer	Public Record Hash	Confidential	Notes
AMD-001	AG-001	TBD	Amendment / Side Letter / Joinder	TBD	TBD	TBD	TBD	TBD	Placeholder.

Part IV — Terminations and Notices

Event ID	Related Agreement ID	Trigger	Action	Effective Date	Authority	Notes
TERM-001	AG-001	TBD	Terminated / Suspended / Expired	TBD	TBD	Placeholder.

Part V — Confidential Counterparties

Where a counterparty must remain confidential, the entry may be recorded by:

1. a confidential hash or content identifier; and/or
2. a placeholder with a reveal procedure if required by mandatory law.

Full particulars of confidential counterparties are maintained in the SOP Registry as Confidential Information.

Amendment

This Register is a Secondary Instrument and may be amended by Resolution in accordance with §6.5(3) of the Operating Agreement. Any material change to the structure, format, or governing rules of this Register requires Resolution.

Record-Keeping Updates

Entries may be added, removed, corrected, or refreshed as record-keeping updates under delegated authority in accordance with §6.7 of the Operating Agreement, provided such updates do not materially alter the structure, format, or governing rules of this Register. Any such update must be recorded in the SOP Registry and submitted for ratification as required by §6.7.

Record-keeping updates do not, by themselves, create authority to enter into an agreement, expand any delegated authority, or constitute approval of the underlying agreement beyond the authority under which it was entered.

SOP: Order of Business for Operational Packs

Status: Pre-formation (executed by Organizer; not adopted by on-chain vote)

Effectiveness: This SOP takes effect on the Effective Date of the Company's Certificate of Formation.

TERTIARY INSTRUMENT. This SOP is a tertiary instrument of the Company Agreement and is maintained in the SOP Registry.

Not a Registrar Registry. This SOP and the SOP Registry are internal governance instruments of the Company. They are not the registry maintained by the Registrar of Corporations, the Marshall Islands DAO LLC Registry, or the IRI Registry. This SOP does not replace or purport to be any Registrar-maintained registry.

Normative Identifier. SOP-00000

Intellectual Property Firewall

"Protocol" in this SOP, the SOP Registry, and SOP Registry entries has the same meaning as **"Protocol IP"** as defined in Operating Agreement §2.1(17) - design, documentation, code, repositories, and other intellectual property. It does not mean an operating business, service, issuer, custodian, counterparty, or other person or entity.

1. Purpose

This SOP defines how the Company adopts, amends, and periodically ratifies standard operating procedures without requiring a full governance cycle for every operational change.

2. Document Hierarchy

The Company Agreement comprises:

- **Primary Instruments:** the Operating Agreement, the Founding Charter, and the IP License Framework;
- **Secondary Instruments:** the Smart Contract Registry, Website Registry, Intellectual Property Registry, IP License & Assignment Register, and the Counterparty Agreements Register; and
- **Tertiary Instruments:** this SOP, and the SOP Registry.

In the event of conflict, the order of precedence established in the Operating Agreement applies.

Tertiary Instruments may not expand authority beyond what Primary and Secondary Instruments and on-chain constraints permit.

3. Interim Adoption

The Head Steward may adopt or amend SOPs on an interim basis within existing authority. Subcommittees may adopt or amend SOPs within their existing authority and defined scope (Founding Charter §8.2). Either may rely on drafts or inputs prepared by Subcommittees or delegates acting within their mandates.

Interim SOPs:

1. bind only within the scope of existing authority;

2. do not create obligations for Members beyond existing obligations;

3. do not grant new rights to access or move Company Treasury Accounts; and

4. do not modify Primary or Secondary Instruments.

4. Periodic Ratification

The Company should ratify SOP changes through periodic Operational Pack proposals. Each Operational Pack should include:

1. **Scope statement.** Categories of SOPs covered.

2. **Change log.** Summary of additions, removals, and material changes.
3. **Content identifiers.** Hashes or content identifiers for each SOP.
4. **Effective date.** When the ratified pack becomes effective.
5. **Review date.** When the next pack is expected.

5. Standard Order of Business

Unless a proposal specifies otherwise:

1. Notice and agenda.
2. Eligibility checks.
3. Disclosures (conflicts and material implications, subject to confidentiality).
4. Resolution text.
5. Execution Bundle review.
6. Risk checks.
7. Voting and adoption.
8. Execution and post-execution reporting.

6. Confidentiality

This SOP does not require public disclosure of Confidential Information or Security-Sensitive Information. The Company may rely on:

1. on-chain constraints;
2. independent audits and attestations; and
3. post-facto reporting.

7. Confidential Entries

The SOP Registry may include confidential entries recorded by:

1. a confidential hash or content identifier; and
2. metadata sufficient for integrity verification.

Confidential entries do not grant membership, voting rights, economic rights, or authority beyond existing on-chain constraints.

Full particulars are disclosed only:

1. to a confidential reviewer or auditor under appropriate controls; or

2. in response to a lawful legal request.

8. Recordkeeping

Each ratified Operational Pack should be recorded with its content identifiers and effective date.

The SOP Registry maintains the current ratified versions of governance instruments. Superseded versions are retained for auditability.

9. Canonical Locations

Proposal Repository. The proposal repository is the canonical source for proposal history, drafts, and execution artefacts:

- https://github.com/SolomonDAOrg/dao-proposals

SOP Registry. The SOP Registry is the canonical source for current ratified versions of governance instruments:

- https://github.com/SolomonDAOrg/sop-registry

Record Schema and Tooling. The Company adopts a Record Schema used to describe and validate governance records and registry entries. The canonical references are:

- https://github.com/SolomonDAOrg/record-schema
- https://github.com/SolomonDAOrg/record-schema-toolkit

Each repository's LICENSE governs its contents. The Record Schema and Toolkit are Protocol IP. Public availability does not constitute a license to use, reproduce, or adapt without authorization.

The Company may change, migrate, or replace these locations by Resolution.

10. Confidential Placeholder Records

The SOP Registry may include a Confidential Placeholder Public Key (CPPK) record that publishes:

1. the public key (ed25519; not a program ID or PDA);

2. the role;

3. the scope (spending limits, caps, destination allowlists); and

4. a confidential hash binding the counterparty particulars.

A CPPK record does not grant membership, voting rights, economic rights, or authority. Any authority exists only through on-chain spending limits and program constraints.

The counterparty must be able to prove control of the private key by producing a signature over a standardized challenge message. The attestation may be published or lodged as a confidential instrument.

Counterparty particulars are disclosed only:

1. to a confidential reviewer or auditor under appropriate controls; or

2. in response to a lawful legal request.

11. Amendment

This SOP is a Tertiary Instrument. It may be amended on an interim basis by the Head Steward or by Subcommittees acting within their existing authority (Founding Charter §8.2), in accordance with §6.5(4) of the Operating Agreement. Such amendments must be recorded in the SOP Registry and are subject to objection by Resolution.

No amendment is effective until any required Execution Bundle is executed and the amended instrument is recorded in the SOP Registry in accordance with the Founding Charter.

SIGNATURE PAGE

IN WITNESS WHEREOF, the Head Steward, being duly authorized, has executed this Company Agreement for and on behalf of the Company as of the Effective Date.

The undersigned executes this Company Agreement solely in the capacity stated below, for and on behalf of the Company, and not in an individual capacity except as expressly stated herein.

Acknowledgment/Affirmation.
By signing below over the undersigned's typed or printed name and title, the undersigned affirms, under penalties of perjury, that this instrument is the act and deed of the Company (and not of the undersigned in an individual capacity except as expressly stated herein), and that the facts stated herein are true to the best of the undersigned's knowledge and belief.

HEAD STEWARD:

Name: _____

Title: _____

Date: _____

Signature: _____